# Planning Statement

Woodlands, Parcels R8 & R9, Land North Of A420, New Eastern Villages, Swindon

August 2024

Turley

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**Client**
Taylor Wimpey

**Our reference**
TAYS3122

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# 1. Introduction

1.1 This Planning Statement is submitted on behalf of Taylor Wimpey to Swindon Borough Council in support of a reserved matters application relating to Woodlands, Parcels R8 & R9, New Eastern Villages, Swindon, hereafter referred to as 'the site'.

1.2 The site is situated to the east of Swindon and forms part of the site which was granted outline planning permission (ref. S/OUT/13/1555) on 11th August 2021 which permitted the following development:

*"Outline Planning Permission, for a sustainable urban extension to the east of Swindon and north of the A420 of up to 2,380 dwellings together with a mixed use local centres/areas (including A1 retail up to 1,500 sq metres, services (A2), restaurants, pubs and takeaways (A3, A4, A5), business uses (B1) up to 1,000 sq metres, residential); community uses (D1); sheltered and/or care accommodation (C2/C3); two primary schools; green infrastructure including formal (including playing fields) and informal open space, landscape, biodiversity and amenity space; play space (including NEAPS/LEAPS/MUGAS); changing and sports facilities (including D2) and ancillary retail uses; sustainable drainage systems; highway, cycle and pedestrian routes; car parking; infrastructure (including utilities); engineering works including ground remodelling; demolition, site reclamation and removal of structures; the formation of new accesses from the A420, Old Vicarage Lane and Thornhill Road."*

**Compliance with Outline Conditions**

1.3 The outline application reserved the matters of layout, scale, appearance, and landscaping. A copy of the Decision Notice is included in **Appendix 1.**

1.4 Condition 8 of the outline planning permission required the submission and approval of a Strategic Design Code prior the submission of the first reserved matters.

1.5 An application to discharge condition 8 was validated on the 7th January 2022 (ref. S/COND/22/0031) and was discharged on the 1st May 2024.

1.6 Condition 9 of the outline planning permission required the submission and approval of a Character Area Design Code for each Character Area prior to the first reserved matters within that Character Area.

1.7 An application to discharge condition 9 was validated on the 25th February 2022 (ref. S/COND/22/0315) and was partially discharged on the 12th July 2024 (in relation to Phase 1 – Marston Gate and Nightingale Corner within which the application site is located).

1.8 Condition 6 (Phasing Plan) and Condition 10 (Framework Landscape, Ecology and Arboricultural Management Plan) require approval prior to the submission of the first reserved matters application. Condition 6 (ref. S/COND/21/1998) was discharged on the 2nd August 2022. Condition 10 (ref. S/COND/22/0316) was partially discharged in respect of the application site on the 19th December 2023.

1.9 The first reserved matters application was validated on the 13th May 2024 (ref. S/RES/24/0551) for the following:

*"Reserved Matters application (following planning application S/OUT/13/1555) for details of the layout, scale, appearance, access and landscaping in relation to a foul water pumping station. The outline planning application was subject to and submitted with an Environmental Impact Assessment."*

1.10 This application is pending a decision.

1.11 The description of development for this reserved matters application is as follows:

*"Approval of Reserved Matters pursuant to condition 2 (layout, scale, appearance and landscaping) for the residential development comprising 134 dwellings and provision of public open space with associated infrastructure and earthworks, pursuant to outline planning permission S/OUT/13/1555."*

## Pre-application Engagement

1.12 The applicant has undertaken extensive pre-application engagement with the Council and the general public during design stages for the scheme. This has included throughout the allocation and outline planning application processes, as well as specifically in relation to this reserved matters application. The evolution of the scheme has also drawn upon the approved SDC and CADC referred to above.

1.13 A statement of community engagement (prepared by RKH) has been submitted as part of this planning application.

1.14 The applicant undertook recent pre-application engagement with Swindon Borough Council which included a meeting and written feedback. A table summarising the pre-application feedback and how the proposals have responded to this is provided at **Appendix 2**.

## Accompanying Documentation

1.15 This Statement should be read together with the other documents which accompany the application comprising:

- Application Forms and Certificates (as completed)
- CIL Form (as completed)
- Application Drawings prepared by Cooper Baillie
- Design and Access Statement prepared by Cooper Baillie
- Statement of Community Involvement prepared by Rock Kitchen Harris
- Landscape Plans and associated documents prepared by GL Studio
- Engineering Plans prepared by Taylor Wimpey

- Landscape, Ecology and Arboricultural Management Plan prepared by FCPR
- Drainage Strategy prepared by Brookbanks.

1.16 This report is intended to assist Swindon Borough Council in its determination of the application and has been prepared in accordance with the requirements set out in national and local planning policy.

1.17 The remainder of this Statement is structured as follows:

- **Section 2:** Site and Surrounding Area
- **Section 3:** Planning History
- **Section 4:** The Proposed Development
- **Section 5:** Relevant Planning Policy Context
- **Section 6:** Assessment of Reserved Matters Proposal
- **Section 7:** Conclusions

# 2. Site and Surrounding Area

## Site Description

2.1 The application site is comprised of an agricultural field parcel, extending to circa 4.71 hectares, located on the eastern edge of Swindon, close to South Marston. The site is situated to the east and west of Old Vicarage - Lane, within the St. Margaret and South Marston Ward.

2.2 There are three proposed vehicle access points into the site, two off of Old Vicarage Lane and a third off of the new primary street running south of the village of South Marston.

2.3 The site is bound as follows:

- To the north of the site is Magdalene Close, comprising residential development as approved under application reference: S/18/0711 which has now been completed. Beyond this is South Marston Recreation Ground. To the north east is existing residential development at Church Ground north of Nightingale Lane.

- The land to the south of the site is greenfield, however this area forms part of the wider New Eastern Villages urban extension as approved under outline application reference S/OUT/13/1555. The illustrative masterplan identifies this area as delivering allotments, green space and a LEAP.

- The land to the east of the application site is greenfield, also forming part of the urban extension referenced above. The illustrative masterplan under the outline application identifies this area for green space and a new footpath / cycleway.

- The land to the west is comprised of agricultural fields, with a cluster of agricultural buildings. Further to the west is land comprising a mix of residential and employment uses.

## Surrounding Area

2.4 The site and wider area comprises the New Eastern Villages site allocation (Policy NC3) as identified in the Swindon Borough Local Plan (2026). **Figure 1** below shows the Council's adopted policies map, identifying the site allocation for Policy NC3, with the application site identified in red.

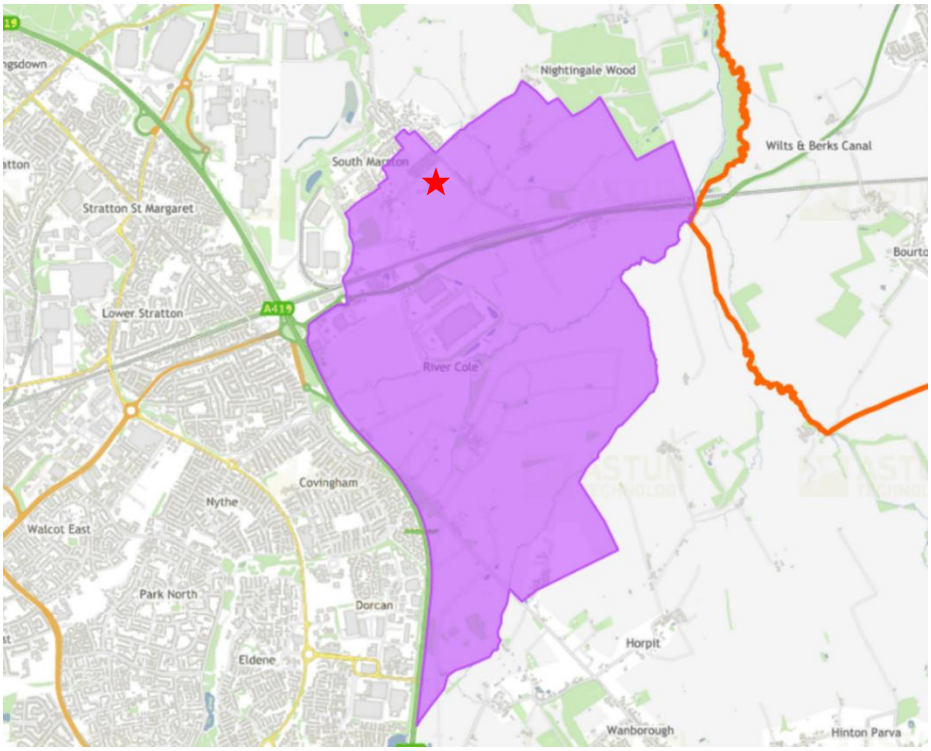


**Figure 1:** Swindon Borough Council adopted policies Map – Site Allocation Policy NC3

## Statutory Designations

2.5 According to the Government Agency map for flooding, the site is located within Flood Zone 1, which has the lowest risk of flooding, according to the Environment Agency's Flood Map for Planning. In terms of surface water flooding, **Figure 2** below identifies that there is a small area of high/medium risk on the eastern part of the site. This does not form part of the reserved matters area and has been addressed under the outline planning permission in respect of the wider site.

**Figure 2:** Government Agency Surface Water Flood Map

2.6 There are no listed buildings on the application site according to Historic England's website. There is a Grade II Listed building (List Entry Number: 1023405) to the south west of the site boundary, referred to as 'The Red House.'

2.7 The site falls within the SSSI Impact Risk Zone for the Tuckmill Meadows SSSI[1]. The site is not located with a Conservation Area or within the Green Belt.

2.8 The application site falls within the site allocation boundaries for:

- Policy NC3: New Eastern Villages - including Rowborough and South Marston Village Expansion
- Policy RA3: South Marston.

[1] MAGIC Maps

# 3. Planning History

## Outline Permission (ref. S/OUT/13/155)

3.1 The outline application for the wider site was approved on the 11th August 2021 and comprised the following description of development:

*"Outline Planning Permission, for a sustainable urban extension to the east of Swindon and north of the A420 of up to 2,380 dwellings together with a mixed use local centres/areas (including A1 retail up to 1,500 sq metres, services (A2), restaurants, pubs and takeaways (A3, A4, A5), business uses (B1) up to 1,000 sq metres, residential); community uses (D1); sheltered and/or care accommodation (C2/C3); two primary schools; green infrastructure including formal (including playing fields) and informal open space, landscape, biodiversity and amenity space; play space (including NEAPS/LEAPS/MUGAS); changing and sports facilities (including D2) and ancillary retail uses; sustainable drainage systems; highway, cycle and pedestrian routes; car parking; infrastructure (including utilities); engineering works including ground remodelling; demolition, site reclamation and removal of structures; the formation of new accesses from the A420, Old Vicarage Lane and Thornhill Road."*

**Compliance with outline conditions**

3.2 **Condition 2** (Reserved Matters) listed on the decision notice states that "*No development shall take place within each sub-phase, until such time as all the reserved matters for that sub-phase have first been submitted to and approved by the Local Planning Authority. The reserved matters are details of the layout, scale, appearance, and landscaping*."

3.3 **Condition 3** (Timing of Reserved Matters) states "*The first application for the approval of reserved matters shall be submitted to the Local Planning Authority before the expiration of 3 years from the date of this permission. All subsequent reserved matters applications shall be submitted no later than 12 years from the date of this permission."*

3.4 A reserved matters application was validated on the 13th May 2024 (ref. S/RES/24/0551) for the following:

"*Reserved Matters application (following planning application S/OUT/13/1555) for details of the layout, scale, appearance, access and landscaping in relation to a foul water pumping station. The outline planning application was subject to and submitted with an Environmental Impact Assessment*."

This application is pending a decision.

3.5 A Certificate of Lawfulness application was submitted and approved on the 27th June 2024. The application confirmed part compliance with Condition 3 (referenced above), in relation to the submission of the first reserved matters application.

3.6 The decision notice for the outline permission contains four conditions that require submission and approval prior to the submission of the first reserved matters

application. These conditions have been discharged in respect of the application site and are set out in more detail in **Table 1** below.

**Table 1: Outline Conditions**

| Condition Number | Application Reference | Discharge Date |
|---|---|---|
| 6 - Phasing Plan | S/COND/21/1998 | 2nd August 2022 |
| 8 - Strategic Design Code | S/COND/22/0031 | 1st May 2024 |
| 9 - Character Area Design Code | S/COND/22/0315 | 12th July 2024 (partially discharged. Discharged in relation to the relevant Character Area for this reserved matters parcel) |
| 10 - Framework, Landscape, Ecology and Arboricultural Management Plan | S/COND/22/0316 | 19th December 2023 (partially discharged. Discharged in relation to the relevant phase for this reserved matters parcel) |

3.7 **Condition 24 (Electric Vehicle Charging Points)** listed on the outline decision notices states that "*Each reserved matters application for development should provide details of any electric vehicle charging points. The location and form of the charging points should be agreed with the Local Planning Authority and implemented in full accordance with the approved plans and maintained as such thereafter.*"

3.8 A plan showing the location of EV charging points has been submitted as part of this application (ref. 20933 26-01).

3.9 **Condition 25 (Turning Facilities)** states that "*Each reserved matters application shall include sequencing details for the delivery of 'roads/routes' as approved under Condition 6 (Phasing), together with the provision of vehicular turning facilities. The works shall be implemented in accordance with the approved details.*"

3.10 A plan showing vehicle tracking details has been submitted alongside this application (ref. 20933 103-01 Rev A).

3.11 **Condition 57** states that "*Each reserved matters shall include a scheme and specification for the provision and location of fire hydrants to meet the firefighting needs of the development, if required to serve that area. No development shall take place other than in accordance with the approved scheme.*"

3.12 No fire hydrants are required as part of this application site and therefore no information has been submitted as part of this application.

**Strategic Design Code ('SDC') (ref. S/COND/22/0031)**

3.13 As mentioned above, the SDC was approved by SBC on the 1st May 2024. The document was produced to inform the development of South Marston Expansion and Rowborough Village, which both form part of the New Eastern Villages Site Allocation (Policy NC3).

3.14 The SDC identifies three character areas where built development is proposed, these are as follows:

- South Marston
- Fairthorne and Thornhill
- Marston Gate and Nightingale Corner (to which this application relates).

3.15 Key design principles for the areas within the Marston Gate and Nightingale Corner Character Area are as follows:

- The character area will be important in helping to define the appearance of the village expansion area from Old Vicarage Lane. This character area should deliver a sensitive, contextual response to the existing eastern edge of South Marston.
- The primary street will run through the character area providing access and a structuring element which development will front onto.
- A gateway design to be established at the new access point on Old Vicarage Lane.
- Dwellings that front Old Vicarage Lane will have direct access from Old Vicarage Lane, seeking to minimise hedgerow removal, either via individual driveways or private driveways to groups of dwellings.
- Houses reflecting the existing character of development along Old Vicarage Lane will be appropriate within this area with opportunities for higher densities within residential blocks and lower densities addressing the open space.
- Pedestrian and cycle route, together with bridleways, will provide connections to the wider development and green infrastructure.
- Play area and community orchard, as part of wider landscape framework, will be accommodated within the heart of this area.
- Pedestrian and cycle permeability to be allowed across the boundary along the bridleway to the north, to offer access to Vicarage Gardens.

**Character Area Design Code ('CADC') (Marston Gate and Nightingale Corner) (ref. S/COND/22/0315)**

3.16 The CADC for Marston Gate and Nightingale Corner was approved by SBC on the 12th July 2024. This builds on the detail approved in the Strategic Design Code discussed above.

3.17 The CADC identified the following character areas within the application site:

- Old Vicarage Lane
- Primary Street
- Parkland Edge.

3.18 The following design principles are set out in the approved CADC and have been included as part of the submitted layout for this reserved matters application:

- All modes access to be provided from Old Vicarage Lane and from Primary Street.
- Existing bridleway along The Leaze to be retained and resurfaced.
- Key space is identified at the centre of the Character Area, highlighting importance of the central green space which consist of play and community orchard, forming a green heart where residents can gather and enjoy.[2]
- Dwellings that front Old Vicarage Lane will have direct access from Old Vicarage Lane, seeking to minimise hedgerow removal, either via individual driveways or private driveways to groups of dwellings.
- A well-connected network of pedestrian and cycle routes to be established linking residential parcels to open space.
- Surface water run-off to be collected in drainage basins located within the open space along the development parcel boundaries.

[2] This is located to the south of the application boundary for this submission

# 4. Reserved Matters Approval: Proposed Development

4.1 This application provides full details of the appearance, scale, layout and landscaping for the application site pursuant to the outline permission under reference S/OUT/13/1555.

4.2 Planning permission is sought for the following description of development:

*"Approval of Reserved Matters pursuant to condition 2 (layout, scale, appearance and landscaping) for the residential development comprising 134 dwellings and provision of public open space with associated infrastructure and earthworks, pursuant to outline planning permission S/OUT/13/1555."*

4.3 The approved Strategic Design Code ('SDC') (ref. S/COND/22/0031) and Character Area Design Code ('CADC') (ref. S/COND/22/0315) build on the work completed at outline stage and set out the structural layers, design parameters and architectural character that has informed this reserved matters submission. The SDC builds the spatial layers that have informed the layout, build quality, public realm and landscaping. The intention of the CADC is to ensure that design quality delivered is consistent with the principles that are outlined in the SDC. The application site is referred to as CADC 1 (Marston Gate and Nightingale Corner Character Area Design Code).

4.4 The outline approval (ref. S/OUT/13/1555) granted consent for 2,380 dwellings. This application proposes development of 134 dwellings with 31 affordable dwellings. The scale of development, in terms of the number of dwellings proposed therefore continues to comply with the parameters approved at outline stage.

4.5 Development is to be carried out in accordance with the following documents cited on the decision notice for the outline permission:

- Location Plan - Drawing Number (DN) LHL005-144 G (submitted to LPA on 14th February 2017)
- Proposed Highway Layout - Railway Crossing - DN 1335/HL/10 E (submitted to LPA on 14th February 2017)
- Highway Access & Improvement Works Context Plan - DN 1335-HL-23 G (submitted to LPA on 14th February 2017)

4.6 Development is to be carried out in broad accordance with the following:

- Illustrative Masterplan (Drawing No. LHL005/177/F) and Development Framework Plan (Drawing No. LHL005-DFP-001 Rev A).

4.7 Full details of the scheme can be found within the submitted plans and the Design and Access Statement (prepared by Cooper Baillie). This section seeks to provide a summary to assist in assessing the planning considerations.

## Housing Mix and Tenure

4.8 The proposed layout includes the provision of 134 dwellings comprising a mix of 1-, 2-, 3-, and 4-bedroom properties. The overall mix of the proposed development is set out below:

| Tenure | | 1-bed | 2-bed | 3-bed | 4-bed | TOTAL |
|---|---|---|---|---|---|---|
| Market | | - | 9 | 53 | 41 | 103 |
| Affordable | Rented | 6 | 5 | 5 | 0 | 31 |
| | Intermediate | - | 9 | 5 | 1 | |

4.9 A full breakdown of the accommodation schedule, including their respective floorspace and proposed location within the site is shown on the accompanying plans submitted alongside this statement.

**Accessible Dwellings**

4.10 The layout includes the provision of the following accessible units:

- M4(2) – All plots are M4(2) compliant internally
- M4 (3) – Plots 108-109.

## Layout

4.11 The site layout has been informed through the principles established through the approved SDC and CADC, and the technical material that supported the outline planning permission.

4.12 The proposals have been developed through previous advice received from the Council and the public consultation process undertaken. Accordingly, the proposals subject to this reserved matters application now comprise the following elements:

- New focal open space with no vehicular traffic passing through it, creates a destination point and strong sense of character as well as reducing the opportunity for a 'rat-run' which was raised at consultation.
- The Parish requested the cycle link runs north through the centre of the site to tie into the Bellway development to the north.
- Through pre-application process the development was required to provide a developed edge that fronted the wider open space, which required changes to the block structure.
- Access points for private drives have been created to make the dwellings in this location more easily accessible for future residents.
- Desire lines have been incorporated into the masterplan to encourage and deliver ease of movement and active travel.

- Apartment buildings have been strategically placed to terminate views from the wider masterplan and assist with legibility.

- Parking courts have sought to be reduced where possible to provide more active frontage.

4.13 The majority of plots accord with the Council's requirements in respect of back-to-back and back-to-side distances. There are however 4 instances where a minor deviation from standard is shown in back-to-back distances and 2 instances in respect of back-to-side distances.

4.14 A mix of walls and fencing enclose private amenity areas. Details of the external enclosure materials are provided within the supporting Design and Access Statement.

**Character Areas**

4.15 Within the approved SDC, a total of five character areas have been identified. This reserved matters application relates to the site falling within the Marston Gate and Nightingale Corner Character Area.

4.16 These principles have been adhered to as part of this reserved matters submission as demonstrated through the wider application material and discussed below.

**Density**

4.17 The proposed average density for the site is 33.4 dwellings per hectare (dph).

**Vehicular and Cycle Parking**

4.18 The scheme proposes 344 vehicular spaces overall. A breakdown of the vehicular parking proposed is set out below.

| Parking | No. of spaces |
|---|---|
| Allocated on-plot parking spaces | 253 |
| Allocated Carport spaces | 4 |
| Allocated Garage spaces | 62 |
| Visitor Spaces | 25 |
| **TOTAL:** | **344** |

4.19 Long term cycle storage shall be provided in accordance with the Council's parking SPD. This will be within garage where they are provided and within gardens for all plots without garages.

**Refuse and Servicing**

4.20 An area of hardstanding will be provided to ensure refuse and recycling can be stored within the garden of the proposed dwellings, with the provision of a side gate to access the street to enable ease of storage and carry for refuse collections.

4.21 The development has been designed so that large refuse vehicles (11.4m in length), can manoeuvre through the street network. Bins will be located within a 25m carry distance of refuse vehicles and within 30m from a resident's boundary.

## Scale

4.22 The development will be characterised by 2 storey dwellings with garages at single storey.

4.23 Apartment block A located to the south of the site will be 2.5 storeys.

## Appearance

4.24 The appearance of the scheme builds upon the principles established within the Strategic Design Code and the Character Area Design Code. The proposed dwellings include a mixture of short terraced, semi-detached and detached housing of high-quality design to complement the character of the area.

4.25 The detailed elevations for the individual house types provided across the site reflect the approved SDC and CADC and is built upon within the supporting Design and Access Statement.

4.26 The materials palette for the 4 identified character areas within the site are as follows:

**Table 4.1: Character Area Materials Palette**

| Character Area | Proposed Materials |
|---|---|
| Old Vicarage Lane | Red Multi Brick<br>Roughcast Render<br>Red Roof Tiles<br>Grey Roof Tiles |
| Primary Street | Red Multi Brick<br>Buff Multi Brick<br>Grey Roof Tiles |
| Parkland Edge | Buff Multi Brick<br>Dark Grey Cladding<br>Grey Roof Tiles |

4.27 Full details of the appearance of the scheme are set out in the submitted Design and Access Statement (prepared by Cooper Baillie).

## Landscaping

4.28 The proposed landscape framework responds to the constraints and opportunities of the site, with the existing landscape features given prominence within the development. Residential homes are to be integrated within the setting, enabling the

overall development to deliver a sequence of routes, streets and spaces of varying character.

4.29 The scheme is structured around the existing landscape features of the site, keeping existing hedgerows and trees wherever possible. These provide important green corridors through and around the development. The proposed scheme includes the following features:

- Tree planting will soften views of the development from surrounding areas.
- Existing mature hedgerows form important green corridors, connecting the site with the wider landscape and setting.
- Tree planting will provide a natural vertical element to the street scape, softening the built form.
- The existing bridleway is strengthened with new native hedgerow planting and tree planting.
- A new central green space provides a focal point and meeting place, with benches providing opportunities to rest.
- Ornamental planting beds provide seasonal visual interest as well as being important for pollinators and other wildlife.

4.30 Full details of the scheme proposals, including hard and soft landscaping details are provided in the accompanying landscape plans and Design and Access Statement.

# 5. Planning Policy Context

5.1 This section identifies the relevant national and local planning policies and guidance which are relevant to the consideration of the proposals and assesses the application submission within this context.

**The Development Plan**

5.2 Section 38(6) of the Planning and Compulsory Purchase Act 2004 states that:

*"Regard is to be had to the development plan for the purpose of any determination to be made under the Planning Acts the determination must be made in accordance with the plan unless material considerations indicate otherwise."*

5.3 The adopted Development Plan in this case comprises:

- Swindon Borough Local Plan 2026 (adopted 2015)
- Adopted policies map
- South Marston Neighbourhood Plan ('made' 2017).

5.4 Other material considerations include the following:

- National Planning Policy Framework (the 'Framework')
- National Planning Practice Guidance (the 'PPG')
- Relevant adopted Supplementary Planning Documents ('SPDs')
- Emerging Swindon Local Plan Review.

**Swindon Borough Local Plan 2026 (adopted March 2015)**

5.5 The Swindon Borough Local Plan 2026 was adopted in March 2015 and forms the main development plan document guiding development in the borough over the period of up to 2026.

5.6 Relevant policies of the Swindon Borough Local Plan 2026 are set out below:

- Policy NC3 (New Eastern Villages – including Rowborough and South Marston Village Expansion)
- Policy RA3 (South Marston)
- Policy SD1 (Sustainable Development Principles)
- Policy SD2 (The Sustainable Development Strategy)
- Policy SD3 (Managing Development)

- Policy DE1 (High Quality Design)
- Policy DE2 (Sustainable Construction)
- Policy HA1 (Mix, Types and Density)
- Policy HA2 (Affordable Housing)
- Policy HA3 (Wheelchair Accessible Housing)
- Policy TR1 (Sustainable Transport Networks)
- Policy TR2 (Transport and Development)
- Policy CM2 (Active, Healthy and Safe Lifestyles)
- Policy EN1 (Green Infrastructure Network)
- Policy EN2 (Community Forest)
- Policy EN3 (Open Space)
- Policy EN4 (Biodiversity and Geodiversity)
- Policy EN5 (Landscape Character and Historic Landscape).

**South Marston Neighbourhood Plan ('made' 2017)**

5.7 The South Marston Neighbourhood Plan was made in November 2017 and sets out policies specifically relating to sites within the Neighbourhood Plan Boundary. The key policies relevant to the proposals are as follows:

- Policy 1 (Integrated Development)
- Policy 2 (Design)
- Policy 4 (Highway Network)
- Policy 6 (Connectivity and Permeability)
- Policy 8 (Cycleways and Footpaths)
- Policy 10 (Hedges).

## Material Considerations

**National Planning Policy Framework (the 'Framework') (December 2023)**

5.8 The revised National Planning Policy Framework (the 'Framework') was published in December 2023. The Framework covers a range of issues to promote sustainable growth and protect the environment. The following paragraphs of the Framework are considered of particular relevance in the determination of this application.

5.9 **Paragraph 7** of the Framework sets out that the purpose of the planning system is to contribute to the achievement of sustainable development.

5.10 **Paragraph 47** states that planning law requires that applications for planning permission be determined in accordance with the development plan, unless material considerations indicate otherwise. Decisions on applications should be made as quickly as possible, and within statutory timescales unless a longer period has been agreed by the applicant in writing.

5.11 **Paragraph 96** states that planning decisions should aim to achieve healthy, inclusive and safe places and beautiful buildings which are safe and accessible, so that crime and disorder, and the fear of crime, do not undermine the quality of life or community cohesion – for example through the use of beautiful, well-designed, clear and legible pedestrian and cycle routes, and high quality public space, which encourage the active and continual use of public areas.

5.12 **Chapter 12** of the Framework sets out the Government's requirements for achieving well-designed and beautiful places.

5.13 **Paragraph 131** states "*The creation of high quality, beautiful and sustainable buildings and places is fundamental to what the planning and development process should achieve. Good design is a key aspect of sustainable development, creates better places in which to live and work and helps make development acceptable to communities. Being clear about design expectations, and how these will be tested, is essential for achieving this. So too is effective engagement between applicants, communities, local planning authorities and other interests throughout the process*."

5.14 **Paragraph 135** states that planning decisions should ensure developments:

*"a) will function well and add to the overall quality of the area, not just for the short term but over the lifetime of the development;*

*b) are visually attractive as a result of good architecture, layout and appropriate and effective landscaping;*

*c) are sympathetic to local character and history, including the surrounding built environment and landscape setting, while not preventing or discouraging appropriate innovation or change (such as increased densities);*

*d) establish or maintain a strong sense of place, using the arrangement of streets, spaces, building types and materials to create attractive, welcoming and distinctive places to live, work and visit;*

*e) optimise the potential of the site to accommodate and sustain an appropriate amount and mix of development (including green and other public space) and support local facilities and transport networks; and*

*f) create places that are safe, inclusive and accessible and which promote health and well-being, with a high standard of amenity for existing and future users52; and where*

*crime and disorder, and the fear of crime, do not undermine the quality of life or community cohesion and resilience."*

5.15 **Paragraph 137** states that "*Design quality should be considered throughout the evolution and assessment of individual proposals. Early discussion between applicants, the local planning authority and local community about the design and style of emerging schemes is important for clarifying expectations and reconciling local and commercial interests. Applicants should work closely with those affected by their proposals to evolve designs that take account of the views of the community. Applications that can demonstrate early, proactive and effective engagement with the community should be looked on more favourably than those that cannot."*

**Written Ministerial Statement (WMS) and consultation draft National Planning Policy Framework (NPPF) (July 2024)**

5.16 Following confirmation of a Labour Government in July 2024, a written ministerial statement was issued on the 30th July 2024 setting out the Government's clear direction of travel in terms of the importance of delivering homes the country needs.

5.17 The Government has now launched a consultation on their proposed reforms to the National Planning Policy Framework along with detailed wider changes to the planning system and introduced new flexibilities for councils and housing associations.

5.18 Whilst the draft Framework is considered to be capable of being a material consideration, particularly noting the direction of travel, it should not carry any weight in the determination of this application. The WMS provides further emphasis of the imperative of delivering homes to meeting housing needs swiftly.

**National Planning Practice Guidance ('NPPG')**

5.19 The National Planning Practice Guidance (NPPG) was launched by DCLG on 6th March 2014 as a web-based resource to bring together planning practice guidance for England in an accessible and usable way.

5.20 The NPPG sets out guidance on a wide range of topics and due regard has been paid to these as appropriate in the development of the proposals.

**Supplementary Planning Documents ('SPDs') and Other Guidance ('SPGs')**

5.21 Swindon Borough Council has adopted a number of supplementary planning documents ('SPDs') and guidance which are material considerations in the planning decision making process. Relevant SPDs include:

- Inclusive Design Access for all SPD (April 2011)
- Residential Design Guide SPD (June 2016).

5.22 Other relevant guidance that Swindon Borough Council has adopted include the following:

- Parking Standards for New Development (February 2021); and
- Affordable housing development control guidance note (November 2016).

## Emerging Swindon Borough Local Plan

5.23 Swindon Borough Council are currently preparing their new Local Plan. The latest Local Development Scheme (approved by Cabinet on the 7th December 2022), sets out the following anticipated timescales for preparation of the new plan:

- Public consultation on New Local Plan – Scope, Issues and Preferred Options (Regulation 18)- Commence Summer 2024
- Public consultation on Pre-submission (Regulation 19) - Commence Winter 2024
- Submission to Secretary of State (Regulation 22) - By June 2025
- Examination in Public (Regulation 24) and Major Modifications Consultations - Autumn / Winter 2025
- Inspector's Report (Regulation 25) - Spring 2026
- Adoption (Regulation 26) Spring / Summer 2026.

5.24 Given the current status of the emerging Local Plan, this should be afforded no weight in the determination of this application.

## Community Infrastructure Levy (CIL)

5.25 Swindon Borough Council adopted a CIL Charging Schedule in April 2015. The site is located within Zone 1: Swindon's New Communities where there is a charging rate of £0 per sqm for residential development.

# 6. Assessment of Reserved Matters Proposals

6.1 This section considers the reserved matters proposals against policies contained within the Development Plan and other relevant material considerations.

**Principle of Development**

6.2 This application is to be determined in accordance with Section 38(6) of the 2004 Planning and Compulsory Purchase Act. This requires, in the first instance, regard to the Development Plan and then also material considerations.

6.3 Policy SD1 sets out a clear statement of the presumption in favour of sustainable development, reflecting the position taken by the Framework.

6.4 Policy SD2 allocates a number of strategic urban extensions to the east of Swindon, including New Eastern Villages, which has been allocated to accommodate circa 6,000 dwellings, with 1,500 dwellings to be accommodated at Rowborough and 500 at South Marston village.

6.5 Policy RA3 requires development at South Marston to be in accordance with policies SD1 and SD2 and "*must contribute towards the creation of an integrated village with a distinct rural and separate identity from Swindon and other settlements."* The outline application for the wider site considered compliance with policies SD1 and SD2 and was found acceptable.

6.6 Policy SD3 states that "*planning applications that are in accordance with the policies in this Local Plan (and with policies in adopted neighbourhood plans) will be approved without delay, unless material considerations indicate otherwise."*

6.7 Strategic policy NC3 states that the development shall provide "*about 1,500 dwellings at Rowborough (north of the A420).*" Delivery of 134 dwellings at parcels R8 and R9 complies with the requirements of the site allocation in terms of housing delivery.

6.8 The outline planning permission has established the principle of residential development on the site. This reserved matters application considers specific details relating to appearance, layout, scale and landscaping pursuant to the delivery of 134 residential dwellings.

6.9 For each reserved matter, the policy context has been set out within the respective sections to assess the detailed proposals.

**Design Considerations**

***Compliance with approved Strategic Design Code ('SDC') and the Character Area Design Code ('CADC')***

6.10 Paragraph 134 of the Framework states that *"Design guides and codes can be prepared at an area-wide, neighbourhood or site specific scale, and to carry weight in decision-making should be produced either as part of a plan or as supplementary planning documents."*

6.11 Neighbourhood Plan Policy 2 (Design) states that "*It will be a condition of any outline planning consent for residential or mixed use development on the principal brownfield and greenfield sites that a Design Code(s) or framework plan or appropriate alternative mechanisms shall be submitted to, and approved in writing by the Borough Council prior to the approval of any reserved matters applications for such uses.*"

6.12 Policy SD3 (Managing Development) states that following outline permission being granted, detailed design submissions including reserved matters applications should be guided by an overarching design approach that is set out in design codes and/or framework plans or appropriate alternative mechanism.

6.13 The layout for the scheme has evolved following numerous pre-application discussions with the Council and public consultation. In addition, the scheme has been developed in accordance with the approved SDC and CADC, which considered the opportunities and constraints of the site as part of the wider allocation on a more focused scale within the CADC. Section 11 of the Design and Access Statement confirms the proposals are compliant with the CADC, and therefore the SDC, having regard to the details presented in the earlier sections of the Statement and the supporting application documentation.

## Layout

***Internal Movement***

6.14 Policy TR1 and TR2 set out the Council's requirements for delivery of vehicular and pedestrian networks, and encouraging sustainable travel within new developments. Neighbourhood Plan Policy 1 states that "*Development at South Marston Village will deliver a coherent village structure based around a central village area with strong connectivity achieved through its network of streets, cycleways and footpaths.*"

6.15 Policy CM2 states that active, healthy and safe lifestyles will be enabled by increasing opportunities to walk and cycle. The proposed development includes provision of a pedestrian and cycle network within the site, connecting to the wider area to encourage sustainable travel choices. The block structure is designed to maximise the connections through the proposed development.

6.16 The principles accesses into the site were established through the outline approval. Condition 7 attached to the outline permission states that all reserved matters applications should be in broad accordance with the Illustrative Masterplan (ref. LHL005/177/F) and the Development Framework Plan (ref. LHL005-DFP-001 Rev A), as well as the approved Design Code documents.

6.17 In accordance with these requirements, three vehicular access points are proposed into the site, two off Old Vicarage Lane and a third off the new primary street running south of the village of South Marston. The road alignment fully accords with the principles of the design code in terms of east-west and south-north links. The proposed road network accords with the Design Code and its parameters for adoption with alignment co-ordinated with other phases.

6.18 The internal layout has evolved to ensure permeability through the site and to reflect the approved principles established within the SDC and CADC. The internal street

hierarchy has further evolved through consideration of the character areas. This has resulted in a hierarchy of:

- Primary street located to the south west of the site;
- Secondary street located within the parcel west of Old Vicarage Lane;
- Tertiary street located within the parcel east of Old Vicarage Lane; and
- Several private drives across both parcels.

6.19 The above reflects the requirements for movement set out within the approved SDC, CADC, Policy TR1 and TR2 and Neighbourhood Plan Policy 4 (Highway Network).

***Wider Connectivity and Permeability***

6.20 Local Plan policy DE1 states that the layout, form and function of developments will be assessed against their accessibility, connectivity and permeability.

6.21 Policy NC3 states that development within the allocation should provide sustainable transport links including walking and cycle network improvements that integrate with existing networks and provide good connectivity within the development and the surrounding area.

6.22 Neighbourhood Plan policy 6 states "*A new road connection between Old Vicarage Lane and Thornhill Road will be part of the street network and serve the new housing areas. The vehicular network will allow for all new strategic housing allocations between Old Vicarage Lane and Thornhill Road to be able to access the new Village Centre without using existing village roads.*"

6.23 The proposed development will deliver part of this road connection to the south of the site as shown on the submitted site layout (ref. CB_86_263_R8-R9_001 Rev C).

6.24 Neighbourhood Plan policy 8 states "*All proposals for development at South Marston Village must contribute towards creating a network of cycle routes, cycleways and footpaths including through provision on street and new or improved cycle and/or footpath routes.*"

6.25 The proposed layout facilitated the provision of pedestrian and cycle routes within the site that connect with the wider network, including bridleways that connect to the existing residential development to the north (Magdalen Close). In addition, the layout facilitates a network of pedestrian footpaths within the site, that increase permeability across both parcels.

6.26 The proposed development will comply with the requirements of policy DE1, NC3, and Neighbourhood Plan policy 6.

***Density and Mix***

6.27 Policy HA1 (Mix, Types and Density) requires development to be design-led with densities, house types and sizes respecting the character of the surrounding area. The policy requires a variety of densities, house types and sizes to meet local needs as identified in the Swindon Strategic Housing Market Assessment ('SHMA').

6.28 Policy RA3 requires delivery of affordable housing in accordance with Policy HA2 which targets delivery of 30% affordable housing on sites, with Policy RA3 (South Marston) advising compliance with HA2 but at a proportion of no more than 20%.

6.29 As the Council will be aware, the Section 106 agreement for the outline permission sets out the following requirement at *Part 1 – Provision of Affordable Housing Units* (paragraph 1.2) in respect of the affordable housing mix:

*"Twenty three percent (23%) of the Dwellings which are constructed on the Application Site shall be Affordable Housing of which fifty percent (50%) shall be Affordable Rented Units (or Intermediate Rented Units in the event that Affordable Rent is no longer available to the Registered Provider) and fifty percent (50%) shall be Intermediate Units or such other tenure mix as may be proposed by the Owner and approved by the Council (and based on the total of two thousand three hundred eighty (2380) Dwellings proposed on the Application Site five hundred forty eight (548) shall be Affordable Housing) with a mix as follows:*

*a) Fifteen percent (15%) x one-bedroom flats (2 persons)*

*b) Fifty three percent (53%) x two-bedroom flats and houses (4 persons); the majority of which to be houses*

*c) Thirty percent (30%) x three-bedroom houses (5 persons); including some ground floor level access 3-bed flats (5 persons) for Affordable Rented*

*d) Two percent (2%) x four-bedroom houses (7 persons);*

*Or such other mix as may be proposed by the Owner and approved in writing by the Council."*

6.30 Following discussions with SBC, a letter (**Appendix 4**) was issued to the Council seeking their agreement to amendments to the affordable housing mix in relation to the Shared Ownership units. The request came following feedback from Registers Providers who confirmed they would not accept 1-bed units for Shared Ownership, expressing a preference for 2 and 3-bed units.

6.31 A letter from SBC (dated 2nd May 2023) confirming agreement to the amendment is provided at **Appendix 5**.

6.32 In light of the above, the proposed development seeks to deliver 31 affordable dwellings which represents 23% affordable housing across the site. The proposed breakdown of the affordable units is as follows:

Rented:

- 1-bed – 6 units
- 2-bed – 5 units
- 3-bed – 5 units

Intermediate:

- 2-bed – 9 units
- 3-bed – 5 units
- 4-bed - 1 unit

6.33 Policy RA3 details criteria to be delivered as part of proposals within South Marston including provision of housing at an average of 30 dwellings per hectare. The proposed development proposes to deliver 33.4 dwellings per hectare, a density established through the quantum approved as part of the outline planning permission and the approved SDC and therefore complies with Policy HA1.

***Residential Amenity***

6.34 Paragraph 135 of the Framework requires developments to create places that are safe, inclusive and accessible and which promote health and well-being, with a high standard of amenity for existing and future users. Policy DE1 states that developments will be assessed against design principles including amenity in terms of light, privacy, outlook, noise, disturbance, smell, pollution and space.

6.35 The layout for the site has evolved through consideration of the requirements within the SDC and the CADC and feedback through the pre-application advice process. The appropriate separation distances for dwelling and the size requirements for private amenity space have been considered within the proposed layout.

6.36 In terms of creating safe and accessible places, the proposed scheme proposes a block structure that is highly permeable, with strong degrees of natural surveillance, through the perimeter block forms and with all views terminating on buildings or vegetation to enable a heightened sense of legibility.

6.37 The layout includes provision of two accessible M4(3) dwellings (2%), which complies with Policy HA3 (Wheelchair Accessible Housing).

6.38 Appropriate provision for recycling / waste storage has been provided for each dwelling to ensure design requirements are achieved. Further details are provided on the submitted refuse plan (ref. CB_86_263_R8-R9_007 Rev A).

6.39 The proposed development comprises a single phase within the wider site allocation at South Marston, identified for residential development. The requirements for public open space and play provision etc. are therefore met within other areas within the outline planning permission as agreed through the approved illustrative masterplan and Development Framework Plan and in accordance with the phasing details approved under Condition 6.

6.40 The proposed development respects the character and form of the surrounding area and has considered the delivery of the wider site allocation within the proposed layout in line with policy DE1 and the Framework.

***Vehicular and Cycle Parking***

6.41 Vehicular parking within the site has been designed in accordance with the approved SDC and CADC, along with Swindon's parking standards. Parking standards for the site require the following:

- 1 bedroom - 1 per dwelling
- 2-3 bedrooms - 2 per dwelling
- 4+ bedrooms - 3 per dwelling
- Visitor – 1 space per 4 dwellings.

6.42 A total of 344 parking spaces are proposed on the site, with 25 of these visitor spaces. Whilst there are therefore a higher quantum of allocated parking spaces proposed than the minimum standard and a lower quantum of visitor parking, it is considered an appropriate balance has been struck overall.

6.43 Cycle parking has been provided in accordance with the Council's cycle parking standards and aligns with policy TR2. Long term cycle storage will be within garages where they are provided and within gardens for all plots without garages.

## Scale

6.44 The proposed scale of the development has been information by the parameters set out within the approved SDC and CADC.

6.45 The CADC advises the following in terms of building heights in each character area within the site:

- **Primary Street Frontage:** *Predominantly 2 to 2.5 storey to create an overall sense of variety. Apartment of up to 3 storeys at key location.*
- **Old Vicarage Lane (OVL) Frontage:** *Predominantly 2 storey, with occasional 2.5 storey to create an overall sense of variety. Potential for taller massing is allowed at key corners.*
- **Parkland Edge:** *Building heights of predominantly 2 storey, with occasional variation of height are encouraged to reinforce the informality of the frontage.*

6.46 As the layout has evolved, the overall height of houses on-site has been limited to 2 storeys with garages proposed as single storey, whilst apartment the apartment building is proposed at 2.5 storeys.

6.47 The Design and Access Statement provides details of the scale of development in each key location, which complies with the CADC requirements listed above and policy DE1.

## Appearance

6.48 The Framework at paragraph 135 states the developments should ensure that they are visually attractive as a result of good architecture, layout and appropriate and effective landscaping.

6.49 Policy DE1 (High Quality Design) requires high standards of design for all types of development. The policy sets out design principles for applications to adhere to including context and character, layout form and function, amenity and public realm. This is also reflected in the approved SDC and CADC.

6.50 The character areas shown in the application reflect the approved CADC being. These have informed the scale of built form in these areas and the materials proposed. All requirements of the CADC are met.

***Sustainability***

6.51 The Framework at paragraph 131 states that good design is a key aspect of sustainable development. Policy DE2 (Sustainable Construction) requires all new developments to meet sustainable construction standards.

6.52 The applicant is committed to developing and using sustainable building methods by minimising the use of non-renewable resources and making prudent use of natural resources. The proposed development will be delivered in accordance with the sustainable construction standards detailed within policy DE2.

6.53 Further details regarding sustainable construction are provided within the supporting Design and Access Statement.

## Landscaping

6.54 Policy EN1 (Green Infrastructure Network) requires new development to provide and design green infrastructure to integrate with existing green corridors. Existing feature are sought to be retained. These requirements are reflected in the approved SDC and CADC and are therefore embedded in these reserved matters proposals.

6.55 Policy EN3 (Open Space) requires residential development to provide or contribute towards public open space in line with the Council's open space standards, with developments of over 25 dwellings to provide open space on site. The proposed scheme does not propose to include open space as it forms part of the wider site allocation which will be providing open space across the allocation in a number of locations in accordance with the Council's standards.

6.56 Policy EN5 (Landscape Character and Historic Landscape) seeks to reflect the local landscape character and protect historic landscapes. The principle of the development has been established through the outline planning permission and the parameters approved, with which this reserved matters application accords.

6.57 Landscaping proposed for the application site has been developed through the approved SDC and the CADC. The proposed landscape framework responds to the constraints and opportunities of the site, with the existing landscape features given

prominence within the development. Residential homes are to be integrated within the setting, enabling the overall development to deliver a sequence of routes, streets and spaces of varying character. This will ensure the development has a distinctive sense of place that will respond to the landscape and edge of village setting.

6.58 The scheme is structured around the existing landscape features of the site, keeping existing hedgerows and trees wherever possible. These provide important green corridors through and around the development.

## Other Considerations

### Flood Risk and Drainage

6.59 Overall flood risk across the application site and the wider site allocation were considered and found acceptable through the outline planning permission.

6.60 A drainage strategy for the application site has been prepared by Brookbanks and is submitted as part of this submission demonstrating how the parcel itself will be delivered.

### Ecology

6.61 The Environmental Statement submitted as part of the outline application included a chapter on Ecology and Biodiversity (prepared by FPCR) which assessed the ecological impacts of the application site as part of the wider site allocation. The report prepared considered the requirements of Policy EN2 (Community Forest) and Policy EN4 (Biodiversity and Geodiversity).

6.62 Condition 10 of the outline permission required the submission of a FLEAMP which was submitted (ref. S/COND/22/0316) and partially discharged in relation to the relevant phase for this reserved matters parcel on the 19th December 2023.

6.63 The aim of the approved FLEAMP was to inform the green infrastructure provision of the wider site to ensure that the proposed development and the future management of the green infrastructure preserves and enhances the landscape, biodiversity and arboricultural resources in the long term, in order to maximise its commitment to achieving Biodiversity Net Gain.

6.64 Condition 11 of the outline permission requires submission of a LEAMP as part of the submission of all reserved matters applications.

6.65 This application is supported by a Landscape, Ecology and Arboricultural Management Plan prepared by FCPR which provides a management plan for the development of the application site in the context of, and with reference to the wider New Eastern Villages site allocation. The LEAMP provides details of the management of the area and habitats covered by Woodlands (Parcels R8 and R9) and builds on the habit management prescriptions detailed in the approved FLEAMP.

# 7. Compliance with approved mitigation measures within Environmental Statement (S/OUT/13/1555)

7.1 The outline planning application was accompanied by an Environmental Statement (ES) (November 2013), an Environmental Statement Further Information (ESFI) (April 2016) and an Addendum to the Environmental Statement (ESA) was subsequently submitted in February 2017 following a formal request from Swindon Borough Council in January 2916 for additional information.

7.2 Chapter 2 of the ES set out a description of the proposed development and was accompanied by a Development Framework Plan. Changes to the description of development and Development Framework Plan were set out in the Covering Report of the ESFI. Further minor amendments to the description of the proposed development were set out in Chapter of the ESA.

7.3 The reserved matters application accords with the description of development on which the Environmental Statement was based.

7.4 The following table sets out the topic areas covered by the ES, ESFI and ESA, as well as a summary of the mitigation measures (where these are not embedded into the proposed development) where they relate to the delivery and operation of the parcel for which reserved matters approval is sought and how the proposed development complies with each aspect:

| Topic | Mitigation | Compliance |
|---|---|---|
| Socio-Economic Effects | No mitigation proposed | - |
| Transport | Construction Environmental Management Plan.<br>Provision of walking and cycling networks that includes the PRoW network.<br>Travel Plan. | Construction and environmental management plan secured under condition 37 of the outline planning permission and will be approved prior to commencement of work on the sub-phase. |
| Air Quality | Construction Environmental Management Plan. | Construction and environmental management plan secured under condition 37 of the outline planning permission and will be approved prior to commencement of work on the sub-phase. |

| | | |
|---|---|---|
| Noise and Vibration | Construction Environmental Management Plan. | Construction and environmental management plan secured under condition 37 of the outline planning permission and will be approved prior to commencement of work on the sub-phase. |
| Landscape and Visual Impacts | Accordance with the Green Infrastructure Framework. | The reserved matters proposals accord with the Green Infrastructure Framework. |
| | Maximum building height of 12.5m. | The maximum building height is below 12.5m. |
| | Built form and use of materials, colours and finishes to respond and relate to the local context of South Marston and surrounding villages. | The accompanying Design and Access Statement sets out how the reserved matters proposals respond to this requirement. |
| Ecology and Biodiversity | General construction precautions and guidelines to be followed (including in respect of reptiles, breeding birds etc). | Construction and environmental management plan secured under condition 37 of the outline planning permission and will be approved prior to commencement of work on the sub-phase. |
| | Habitat creation/management plan. | Framework, Landscape, Ecology and Arboricultural Management Plan (FLEAMP) secured under condition 10 of the outline planning permission and has been partially discharged in respect of the application site on the 19th December 2023. |
| | European Protected Species Licence required in respect of Great Crested Newts which will require a detailed mitigation strategy. | Secured as above. |
| | Provision of 90 bat boxes, 40 bat tubes and 5 bat garages (across the development as a whole). | The applicant's internal policy is to provide a minimum 80% of homes with a bird box and 5% of homes with a bat box, plus an undefined number of |

| | | |
|---|---|---|
| | Lighting strategy to consider bat impacts. | bee bricks, bug hotels and hedgehog highways.<br><br>A detailed lighting strategy can be secured by appropriately worded condition attached to the permission. |
| Historic Environment | Programme of archaeological investigations. | Archaeological Written Scheme of Investigation secured under condition 38 (ref. S/COND/21/1956) of the outline planning permission and Archaeology Management Plan secured under condition 39 (ref. S/COND/24/0479). |
| Agriculture and Soil Resources | Materials Management Plan and Site Waste Management Plan. | Materials Management Plan and Site Waste Management Plan secured under condition 37 of the outline planning permission. |
| Water Resources | All mitigation embedded. | - |
| Ground Conditions | Hard paving of all parking areas and commercial use service yards to prevent infiltration of vehicle contamination and direct spillage of liquid products.<br>An efficient system for the collection of storm and foul water from the site and conveyance to an appropriate receptor.<br>Measures to remove background contaminants from surface water drainage prior to discharge and to contain any accidental liquid spillages at the site. | All points are complied with. |

| | | |
|---|---|---|
| Utilities | Construction Environmental Management Plan. | Construction and environmental management plan secured under condition 37 of the outline planning permission and will be approved prior to commencement of work on the sub-phase. |
| Waste | Construction Environmental Management Plan. | Construction and environmental management plan secured under condition 37 of the outline planning permission and will be approved prior to commencement of work on the sub-phase. |
| | Waste Management Plan. | Materials Management Plan a secured under condition 37 of the outline planning permission. |
| | Provision of waste receptacles.<br>Waste collection and access for refuse collection vehicles. | Details of provision of waste receptacles and arrangements for their collection form part of the reserved matters submission. |

# 8. Summary and Conclusions

8.1 This application has been prepared and submitted by Turley on behalf of Taylor Wimpey in relation to Woodlands, Parcels R8 & R9, Land North of A420, New Eastern Villages, Swindon.

8.2 This application seeks reserved matters approval in respect of layout, scale, appearance, and landscaping for 134 dwellings, public open space, landscaping and parking. The proposed development will deliver 31 affordable dwellings (23%) in a mix of intermediate and rented accommodation.

8.3 The submission of this application for the approval of reserved matters is made pursuant to outline planning application (ref: S/OUT/13/1555) for:

*"Approval of Reserved Matters pursuant to condition 2 (layout, scale, appearance and landscaping) for the residential development comprising 134 dwellings and provision of public open space with associated infrastructure and earthworks, pursuant to outline planning permission S/OUT/13/1555."*

8.4 This reserved matters application has come forward in line with the approved Strategic Design Code (ref. S/COND/22/0031) and the Character Area Design Code (Phase 1 – Marston Gate and Nightingale Corner) (ref. S/COND/22/0315).

8.5 Further reserved matters applications will be submitted in due course relating to other areas within the New Eastern Villages site allocation under Policy NE3 within the adopted Swindon Local Plan 2026.

8.6 This Planning Statement has demonstrated that the reserved matters proposals comply with the outline planning permission, approved design code and the relevant adopted planning policies.

8.7 Taylor Wimpey remain committed to the early delivery of the site following the grant of reserved matters approval which will deliver much needed market and affordable housing in the Borough.

8.8 Based on the above and the principle of development having been established through the outline permission, it is respectfully considered that planning permission should be granted for this proposal.

# Appendix 1: Outline Decision Notice (S/OUT/13/1555)

# GRANT PLANNING PERMISSION
## Town and Country Planning Act 1990

Swindon
BOROUGH COUNCIL

**Application Number: S/OUT/13/1555/EDSN** **Ward:** St Margaret And South Marston
**Parish:** South Marston

**Proposal:** Outline Planning Permission, for a sustainable urban extension to the east of Swindon and north of the A420 of up to 2,380 dwellings together with a mixed use local centres/areas (including A1 retail up to 1,500 sq metres, services (A2), restaurants, pubs and takeaways (A3, A4, A5), business uses (B1) up to 1,000 sq metres, residential); community uses (D1); sheltered and/or care accommodation (C2/C3); two primary schools; green infrastructure including formal (including playing fields) and informal open space, landscape, biodiversity and amenity space; play space (including NEAPS/LEAPS/MUGAS); changing and sports facilities (including D2) and ancillary retail uses; sustainable drainage systems; highway, cycle and pedestrian routes; car parking; infrastructure (including utilities); engineering works including ground remodelling; demolition, site reclamation and removal of structures; the formation of new accesses from the A420, Old Vicarage Lane and Thornhill Road.

**Site Address:** Land North Of A420, Eastern Villages Swindon

**Agent:**
Mr Nicholas Freer
David Lock Associates
50 North Thirteenth Street
Central Milton Keynes
MK9 3BP

**Applicant:**
Hallam/Hannick/Taylor Wimpey
C/o Agent

The Local Planning Authority **HEREBY GRANT PLANNING PERMISSION** for the development proposed in the application subject to the scheduled conditions.

**WARNING:**
**IF YOU DO NOT COMPLY WITH THE CONDITION(S) BELOW,**
**THE COUNCIL MAY TAKE LEGAL ACTION AGAINST YOU**

### Conditions

1. Time Limit for Development
The development hereby permitted shall be commenced either before the expiration of 5 years from the date of this permission or before the expiration of 2 years from the date of approval of the last of the reserved matters to be approved, whichever is the later.
Reason: To enable the Local Planning Authority to review the suitability of the development and to accord with Section 92 of the Town and Country Planning Act 1990.

2. Reserved Matters
No development shall take place within each sub-phase, until such time as all the reserved matters for that sub-phase have first been submitted to and approved by the Local Planning Authority. The reserved matters are details of the layout, scale, appearance, and landscaping.
Reason: To accord with Section 92 of the Town and Country Planning Act as the application is in outline.

3. Timing of Reserved Matters
The first application for the approval of reserved matters shall be submitted to the Local Planning Authority before the expiration of 3 years from the date of this permission. All subsequent reserved matters applications shall be submitted no later than 12 years from the date of this permission.
Reason: To enable the Council to review the suitability of the development in accordance with section 92 of the Town and Country Planning Act 1990 (as amended).

4. Approved Plans
The development hereby permitted shall be carried out in accordance with the following approved plans in accordance with the conditions of this planning permission:
o Location Plan - Drawing Number (DN) LHL005-144 G (submitted to LPA on 14th February 2017)
o Proposed Highway Layout - Railway Crossing - DN 1335/HL/10 E (submitted to LPA on 14th February 2017)
o Highway Access & Improvement Works Context Plan - DN 1335-HL-23 G (submitted to LPA on 14th February 2017)
Reason: To define the scope of the development hereby permitted, in accordance with section 72 of the Town and Country Planning Act 1990.

5. Scale of Development
The development hereby permitted shall comply with the following development capacities:
o up to 2,380 dwellings (up to 500 in 'South Marston');
o Use Class A1 (retail/shops - up to 1,500 square metres of gross internal floor area); Use Class A2 (financial and professional services); Use Class A3 (restaurants and cafes); Use Class A4 (drinking establishments); Use Class A5 (hot food takeaways) as defined within the Town and Country Planning (Use Classes) Order 1987 (as amended). In addition, no retail/shop unit (Use Class A1) shall be greater than 600 square metres gross internal floor area;
o provision of community facilities within South Marston and at Rowborough as prescribed in the S106.
o up to 1,000 square metres gross internal floor space of Use Class B1 (Business) use as defined within the Town and Country Planning (Use Classes) Order 1987 (as amended) can be provided within the application site.
Reason: To ensure the development is in accordance with the approved application.

6. Phasing Details
Prior to the submission of the first reserved matters application, a phasing plan shall be submitted to and approved in writing by the Local Planning Authority to show how the development shall be implemented in phases. The phasing plan shall include the following elements:

a) The development phases;
b) Major distributor roads/routes within the site, including a defined hierarchy of the road network,
c) Phased access strategy delivery and associated phased housing delivery;
d) Pedestrian / cycle connectivity to committed and emerging parcels of development within the New Eastern Villages;
e) Local centres and community facilities;
f) Strategic foul and surface water features and sustainable drainage systems; and,
g) Strategic landscaping, recreation and open space.
The development shall be carried out in accordance with the approved phasing plan.
Reason: To ensure the coordination and delivery of infrastructure provision for the new community.

7. Broad Accordance with Masterplan
All reserved matters and Design Codes for the implementation of the development together shall be in broad accordance with the Illustrative Masterplan (Drawing No. LHL005/177/F) and Development Framework Plan (Drawing No. LHL005-DFP-001 Rev A).
Reason: In the interest of the proper planning of the area and to provide a high standard of design.

8. Strategic Design Code
Prior to the submission of the first reserved matters a Strategic Design Code shall have been submitted to and approved in writing by the Local Planning Authority. The Strategic Design Code shall:
a) Develop the vision, design concept, principles and frameworks described in the Design and Access Statement (February 2017);
b) Identify the character areas across the site, including the design approach, character area identity and public realm;
c) Explain how the design principles for the character areas including the local centres will be applied and co-ordinated across the site;
d) Principles to identify how a net biodiversity gain will been achieved across the site; and,
e) Set out landscape principles to ensure the green infrastructure framework (including open space) will make a positive contribution to the public realm, SuDS, movement network, the amenity of residential areas and the reduction of pollution.
Thereafter the reserved matters submissions for each phase shall demonstrate how the development shall accord with the approved Strategic Design Code.
Reason: A Strategic Design Code is required at the beginning of the development process to ensure a holistic approach to coordination of high quality design and continuity of the treatment of the public realm throughout the delivery of the development in accordance with Policies SD3, DE1 and NC3 of the Swindon Borough Local Plan 2026.

9. Character Area Design Code
A Design Code relating to each Character Area as defined in the Strategic Design Code, shall be submitted to and be approved in writing by the Local Planning Authority prior to the submission of the first reserved matters application within that Character Area. Each Design Code shall be in accordance with the Strategic Design Code approved pursuant to

condition 8 above and shall include detailed guidance for that specific Character Area in respect of:
a) The overall vision and character of the character area, and mix of uses;
b) How the character and identity of the development parcel will be established and strengthened through consideration of the public realm, streets, green infrastructure, retained and proposed planting, open spaces and play areas;
c) The form of the development, with reference to densities, block types, building types, building heights, the palette of materials, recycling and waste management, street furniture, inclusive design;
d) The sequencing, hierarchy, typology and treatments of all elements of the movement network (including a proposed route to the eastern boundary to facilitate a highway link into Nightingale Wood within the appropriate Character Area Code);
e) Principles of traffic management, parking provision (including for the 5no. 'car share scheme parking spaces' across the site) and servicing to all properties;
f) The form of movement connections from within housing parcels to connect to the wider pedestrian/cycle network identified on 'Indicative Access and Movement Plan' (LHL005/162 rev P) that provide connectivity to facilities and services; and
g) Any alterations to public transport routes to accommodate the defined phases of development within the site.
Each reserved matters application shall be accompanied by a checklist to demonstrate where the development accords with the relevant approved Character Area Design Code.
Reason: To ensure a holistic approach to co-ordinate and deliver high quality design in accordance with Policy DE1 and Policy NC3 of the Swindon Borough Local Plan 2026.

10. Framework, Landscape, Ecology and Arboricultural Management Plan (FLEAMP)
Prior to the submission of the first reserved matters at South Marston or Rowborough, a Framework Landscape, Ecology and Arboricultural Management Plan (FLEAMP) for that village in broad accordance with the Biodiversity Enhancement Options Plan (DN 1796-L-03 D) (submitted to LPA on 7th September 2017) shall have been submitted to and approved in writing by the Local Planning Authority. The FLEAMPs shall provide an overarching management plan for the development at South Marston and Rowborough. The FLEAMPs shall:
a) Identify the feature specific objectives to achieve the overarching aim;
b) Provide measures to enhance the biodiversity of South Marston Brook through appropriate management of bank side vegetation, the re-grading of bank profiles and re-connecting the South Marston Brook with its floodplain to create greater morphological diversity and a range of floodplain features such as scrapes and wetlands;
c) Provide the location, principles of design, purpose, function, buffer zone and construction of the wet features (ponds and SuDS), including connectivity of water features and designs which minimise the disturbance of wetland and riverine habitats, particularly watervoles;
d) Provide a strategy for net biodiversity gain and enhancement and new priority habitat creation including advanced mitigation and protective measures during construction, long term protection objectives, habitat connectivity, a maintenance schedule and proposals for allowing and restricting public access;
e) Identify the additional green infrastructure that will be created.
The development shall be laid out and made available for use in accordance with the approved FLEAMPs. The submitted FLEAMPs shall be in accord with the approved Open Space Parameter Plan.

Reason: To ensure biodiversity, green infrastructure and assets are protected, integrated with the development and enhanced in accordance with Policies SD3, EN1 and NC3 of the Swindon Borough Local Plan 2026. The FLEAMPs shall also ensure the development provides access to nature to promote human well-being and afford educational opportunities.

11. Landscape, Ecology and Arboricultural Management Plan (LEAMP)
Each reserved matters application shall be accompanied by a Landscape, Ecology and Arboricultural Management Plan (LEAMP). The LEAMP shall be informed by the FLEAMPs approved under Condition 10 above and updated Phase 2 surveys where the last Phase 2 surveys undertaken for the site are more than 2 years old. The LEAMP shall include:
a) Details of the retention of any species receptor sites identified by the Phase 2 surveys for the site;
b) Details of protection for water courses and aquatic habitats against physical and chemical disturbance or pollution;
c) Details of long term objectives, extent and type of new planting; and
d) Details of any new habitat created on site, management responsibilities and maintenance schedules for all landscaped and habitat areas (except privately owned domestic gardens), and the sequencing for provision.

No development on each sub-phase shall commence until the LEAMP for that sub-phase has been approved in writing by the Local Planning Authority.
Thereafter development on each sub-phase shall be progressed in accordance with the approved LEAMP. No development, works or other activities to the identified receptor sites shall be progressed other than in accordance with the works for ecological enhancement and management as set out in the approved LEAMP. The approved management and maintenance schedules shall be adhered to at all times.
The submitted LEAMP shall be in accord with the approved Open Space Strategy.
Reason: To protect wildlife and supporting habitats and to secure opportunities for biodiversity enhancement.

12. Tree Retention Plan
Reserved matters applications shall accord with the details of trees and hedgerows contained within the Arboricultural Assessment (dated February 2017).
The works pursuant to any phase of the development hereby permitted shall comply with the requirements of the above information. Any tree or group of trees or other vegetation, which is shown to be retained in the above details, that is removed, dies or becomes seriously diseased or damaged shall be replaced in the first available planting season with a species, details of which shall first be submitted to and approved in writing by the Local Planning Authority. Any replacement trees and hedgerows shall thereafter be maintained.
Notwithstanding the provisions of Part 2 of Schedule 2 to the Town and Country Planning (General Permitted Development) (England) Order 2015 (or any order revoking and re-enacting that Order with or without modification) no fence or other means of enclosure shall be erected within or closer to any existing hedgerow or tree other than as shown on the plans within the reserved matters approved pursuant to this outline planning permission.
Reason: To ensure the protection of trees and hedgerows on the land.

13. Tree Protection

All trees indicated to be retained on the plans referred to in the Arboricultural Assessment (dated February 2017) above shall be protected in accordance with BS 5837:2012 "Trees in relation to design, demolition and construction - Recommendations". No development shall commence within any sub-phase unless and until (i) details of temporary protective fences to safeguard the trees, hedges or other vegetation to be retained on the site within that sub-phase have been submitted to and approved in writing by the Local Planning Authority, and (ii) the approved fencing shall have been erected in accordance with BS 5837:2012 and the approved details. The approved protection shall be maintained to the required standard throughout the development or until the Local Planning Authority has confirmed in writing that the fencing can be removed.
Reason: To ensure adequate protection is afforded to the trees and /or hedges on the site which are to be retained.

14. Outdoor Sport Pitches - Provision
Prior to the commencement of development of each outdoor sports pitch or pitches, the following shall be submitted to and approved in writing by the Local Planning Authority:
a) A detailed assessment of ground conditions of the land proposed for that new playing field land identified as outdoor sports on drawing number LHL005-DFP-001 Rev A (February 2017) shall be undertaken (including drainage and topography) to identify constraints which could affect playing field quality; and
b) A detailed scheme for that pitch or pitches outlining the construction and layout details, to ensure that the playing fields will be provided to an acceptable quality (including appropriate drainage where necessary).
The works shall be carried out in accordance with the approved scheme within a timescale to be first approved by the Local Planning Authority.
Reason: To ensure that site surveys are undertaken for new or replacement playing fields and that any ground condition constraints can be and are mitigated to ensure provision of an adequate quality playing field and to accord with Local Plan Policy EN3.

15. Community Use Agreement
Prior to the occupation of the 1,200th dwelling, a community use scheme for the sports facilities at Rowborough, shall be submitted to and approved in writing by the Local Planning Authority. The developers shall prepare a scheme that shall include, potential hours of use, approach to access for the public, outline management responsibilities, a mechanism for review and a programme for implementation. The Local Planning Authority shall act reasonably in their consideration and approval of the scheme having regard to the need for the facilities to be commercially viable.
Reason: To secure well managed safe community access to the sports facility, to ensure sufficient benefit to the development of sport in accord with Local Plan Policy CM2.

16. New Vegetation 5 Year Protection
Within each sub-phase all landscaping shall be carried out in accordance with the scheme and details approved under the reserved matters. Any planting carried out in accordance with the approved details that within a period of 5 years from the date of planting dies, is removed or becomes seriously diseased or damaged shall be replaced with planting of similar size and species within the first available planting season.
Reason: To safeguard all features of landscape value in the interests of maintaining biodiversity and aesthetic value.

17. Bats

Within each sub-phase, no buildings shall be demolished or partially demolished, nor works undertaken to existing buildings, and no trees on the sub-phase shall be felled or reduced, that have been identified within the Environmental Assessment as having potential to accommodate bat roosts, before a survey has been undertaken to confirm whether or not bats or bat roosts are present. If bats or their roosts are present, bat mitigation measures shall be submitted to and approved in writing by the Local Planning Authority. Such mitigation measures as may be approved shall be implemented in accordance with the approved details prior to the demolition, partial demolition or tree felling works.
Reason: To protect bats and their supporting habitat.

18. Retail Provision
No more than 600m2 of retail floorspace (measured cumulatively across the application site including any mezzanine floorspace) shall be provided until a Retail Impact Assessment (RIA) to assess the impact on the viability of the town centre and other centres has been submitted to and approved by the Local Planning Authority. Any retail development over 600m2 shall come forward in accordance with the conclusions of the approved RIA. Notwithstanding the provisions of the Town and Country (General Permitted Development) Order 2015 (or any order revoking and re-enacting that Order with or without modification), no individual retail unit (Class A1) within the development hereby permitted shall exceed a gross internal floorspace of 600m2 (including mezzanine floorspace).
Reason: To ensure there would not be an adverse impact on Swindon Town Centre or hierarchy of centres in accordance with Swindon Borough Local Plan 2026 Policy EC3.

19. Permitted Development Rights - Retail
Notwithstanding the provisions of the Town and Country Planning (General Permitted Development) Order 2015 (or any order revoking and re-enacting that Order with or without modification), the proposed retail unit/s (Class A1) shall not be used for any other purpose.
Reason: To protect the vitality and viability of the local centre retail function.

20. Restriction of Employment Uses
Notwithstanding the provisions of the Town and Country (General Permitted Development) Order 2015 (or any order revoking and re-enacting that Order with or without modification), employment (Class B1) floorspace within the development hereby permitted, shall not exceed 1,000 m2. Once provided and notwithstanding the Town and Country (General Permitted Development) Order 2015 (or any order revoking and re-enacting that Order with or without modification) there shall be no insertion of mezzanines or change of use to any other use class as defined by the Town and Country Planning (Use Classes) Order 1987 (as amended).
Reason: To ensure there would not be an adverse impact on Swindon Town Centre or hierarchy of centres.

21. BREEAM
Prior to the occupation of each non-residential development, a BREEAM design stage certificate issued by the British Research Establishment (BRE) shall have been submitted to the Local Planning Authority. The certificate shall demonstrate that the development will attain a standard of "Very Good" in accordance with the BREEAM standard 2014 (as amended). The development shall be carried out only in accordance with the certificate

standard and upon completion of construction a post-construction review shall have been carried out by a licensed assessor, which shall confirm that the development meets the above standard.
Reason: To ensure that the development shall be designed to achieve sustainable construction standards.

22. Car Parking Standards
No dwelling shall be occupied or other building brought in to use until car parking provision for that use in accordance with the approved Design Code(s), together with associated manoeuvring and turning space have been provided in accordance with details that have first been submitted to and approved in writing by the Local Planning Authority. The parking spaces shall be constructed, laid out and made available for use prior to the first occupation of each unit and shall be retained and maintained thereafter for the parking of private motor vehicles.
Reason: To ensure vehicle parking provision is made in accordance with the Council's adopted standards and is available for use for that purpose in the interests of highway safety and residential amenity.

23. Cycle and motorcycle parking and storage
Before the first occupation of each commercial, community or multiple occupancy building, provision shall be made for any bicycle and motorcycle storage that accords with approved design code(s). Any bicycle storage and motorcycle parking provision shall thereafter be retained for the storage of bicycles and parking of motorcycles in connection with the development hereby permitted.
Reason: To ensure satisfactory provision is made for bicycle storage and motorcycle parking at all times.

24. Electric vehicle charging points
Each reserved matters application for development should provide details of any electric vehicle charging points. The location and form of the charging points should be agreed with the Local Planning Authority and implemented in full accordance with the approved plans and maintained as such thereafter.
Reason: To be in line with the governmental plans and commitment to phase out conventional diesel and petrol cars and consequent development of electric cars market as announced in July 2017 and para 110 of the NPPF.

25. Turning Facilities
Each reserved matters application shall include sequencing details for the delivery of 'roads/routes' as approved under Condition 6 (Phasing), together with the provision of vehicular turning facilities. The works shall be implemented in accordance with the approved details.
Reason: In the interests of highway safety.

26. Thornhill Road Junction
Notwithstanding the submitted details, prior to the occupation of any dwelling, detailed design of access proposals in broad compliance with drawing number 1335/HL/56 F (submitted to LPA on 13th October 2017), for the development onto Thornhill Road will be submitted to and approved in writing by the Local Planning Authority. The access proposals will be supported by Stage 2 Road Safety Audit and Walking, Cycling and Horse Riding Assessment and Review and will directly consider the vehicle and

pedestrian access requirements of adjacent properties, including turning of vehicles and road crossing, through both construction phase and operational phase. The access proposals will be completed in all respects prior to the occupation of the 300 dwelling, in accordance with the approved plans and maintained as such thereafter to serve the development.
Reason: To ensure safe and sufficient access proposals are provided through construction and operational phases of development, to consider existing highway users, development occupiers and adjacent residents in interests of highway safety and in compliance with Local Plan Policy TR1 and TR2.

27. Old Vicarage Lane/A420
No work to commence on site that requires access from the OVL until an interim works scheme, in general accordance with drawing 1335-060-03 (submitted to LPA on 21st October 2019) and detailed design for the highway scheme improvement works to OVL junction with the A420, in general accordance with drawing 1335-HL-72-Rev C (submitted to LPA on 13th October 2017) have been submitted and approved in writing by the LPA and has been let to contract. The interim works shall be in place prior to the commencement of development, and the highway scheme improvement works to the junction must be complete to base course and operational before the first dwelling is occupied, where access is taken off the OVL.
Reason: To ensure a satisfactory junction facility is provided in a timely manner in the interests of highway safety and capacity in accordance with local pan policy TR1 and TR2.

28. Eastern Access
Notwithstanding the submitted details, prior to commencement of the works on the access, detailed design of the A420 development access in close proximity to Acorn Bridges, in broad compliance with drawing number 1335-HL-11 Rev E (submitted to LPA on 14th February 2017), shall be submitted to and approved in writing by the Local Planning Authority. The detailed design shall include all details deemed necessary to approve construction, Stage 2 Road Safety Audit, Walking, Cycling and Horse Riding Assessment and Review, signal design and capacity assessment. The junction shall thereafter be completed in all respects with the approved plans prior to occupation of the 1200th dwelling unit at Rowborough (excluding the 500 permitted at 'South Marston'), as defined by the New Eastern Villages Planning Obligations SPD and shall be maintained thereafter.
Reason: To ensure a satisfactory junction facility is provided in a timely manner in the interests of highway safety and capacity in accordance with local pan policy TR1 and TR2.

29. Old Vicarage Lane/Thornhill Road
Prior to the occupation of 100 dwellings within South Marston, full design details shall be submitted to the Local Planning Authority for the road link connecting Old Vicarage Lane through the development site to Thornhill Road, as defined as primary infrastructure between Old Vicarage Lane and Thornhill Road on Drawing: LHL005-DFP-001 Rev A (submitted to LPA on 14th February 2017). The link road shall be completed in accordance with the approved details prior to 300th occupation.
Reason: To ensure that a satisfactory alternative vehicular route is provided in a timely manner, removing the requirement to journey through South Marston Village Centre, in the interests of highway safety, road capacity and in compliance with Local Plan Policy TR1 and TR2.

30. Old Vicarage Lane

Notwithstanding the submitted details on Drawing 1335-HL-59C (submitted to LPA on 13th October 2017) prior to commencement of any dwelling in South Marston served by the OVL priority junction, detailed design of the OVL priority Junction access proposals serving South Marston, shall be submitted to and approved in writing by the Local Planning Authority. The access proposals will be supported by Stage 2 Road Safety Audit and Non-motorised User Audit and will directly consider the vehicle and pedestrian access requirements of adjacent properties, including turning of vehicles and road crossing, through both construction phase and operational phase. Prior to first occupation of any dwelling within South Marston, the OVL priority junction will be completed in all respects in accordance with the approved plans and maintained as such thereafter to serve the development.

Prior to commencement of any dwelling in Rowborough, detailed design of the OVL Junctions (northern and southern access - Plan 1335-HL-57J (submitted to LPA on 13th October 2017)) to Rowborough, shall be submitted to and approved in writing by the Local Planning Authority. The access proposals will be supported by Stage 2 Road Safety Audit and Non-motorised User Audit and will directly consider the vehicle and pedestrian access requirements of adjacent properties, including turning of vehicles and road crossing, through both construction phase and operational phase. Prior to first occupation of any dwelling at Rowborough, the access proposals in relation to the northern access will be completed in all respects in accordance with the approved plans and maintained as such thereafter to serve the development. Prior to first occupation of the 300th dwelling at Rowborough, the access proposals in relation to the southern access will be completed in all respects in accordance with the approved plans and maintained as such thereafter to serve the development.

Reason: to ensure safe and sufficient access proposals are provided through construction and operational phases of development, to consider existing highway users, development occupiers and adjacent residents in interests of highway safety and in compliance with Local Plan Policy TR1 and TR2.

31. Movement Phasing Strategy

Prior to commencement of works within each sub-phase of development, details of a phasing strategy for the 'Indicative Access and Movement Plan' (LHL005 / 162a P Apr 2019) movement framework within that sub-phase shall be submitted to and approved in writing by the Local Planning Authority. The 'movement phasing strategy' shall illustrate how existing and proposed cyclepath/footpath including Public Rights of Way will be maintained open for the pass and repass of the general public through phased construction works of each sub-phase or parcel and details of when each planned new cyclepath/footpath will be delivered to serve development parcels and to provide connections leading to infrastructure provisions in the wider New Eastern Villages and coordinate with their delivery. Infrastructure provisions to be considered shall include Primary and Secondary schools, planned local centres and the District Centre. Each planned new cyclepath/footpath shall be delivered in accordance with the 'movement phasing strategy' to a geometric and construction specification submitted to and approved in writing by the Local Planning Authority.

Notwithstanding the above, the section of the foot/cycle way between Old Vicarage Lane and public right of way 5 (at junction with railway crossing) (as referred to on Swindon Borough Council's Definitive Map) shown indicatively dashed pink on 'Indicative Access and Movement Plan' (LHL005 / 162a P Apr 2019) shall be completed prior to 300th occupation.

Reason: to ensure safe and sufficient sustainable access proposals are provided through construction and operational phases of development, to consider existing highway users, development occupiers and adjacent residents in interests of highway safety and in compliance with Local Plan Policy TR1 and TR2.

32. Consolidated and Surfaced Roads and Footways
The proposed roads, including footpaths and turning spaces where applicable, shall be constructed in such a manner as to ensure that each dwelling before it is occupied shall be served by a properly consolidated and surfaced footpath and carriage way to at least base course level between the dwelling and the existing highway.
Reason: To ensure that the development is served by an adequate means of access.

33. Highways England - M4 J15
No more than 729 dwellings (C3 Land Use) or any other land use shall be occupied unless, and until the improvement scheme for M4 Junction 15 as shown in the WSP / Parsons Brinckerhoff drawings (series of 3) dated 05 December 2016 (drawing ref: M4J15-WSP-HGN-0000-DR-HE-00001 Rev P1; and M4J15-WSP-HGN-0000-DR-HE-00002 Rev P1; and M4J15-WSP-HGN-0000-DR-HE-00003 Rev P1), or an alternative improvement scheme which provides the same or greater level of benefit in terms of offsetting the unacceptable impacts of the development included within the adopted Local Plan 2026 which has been approved by the Local Planning Authority, is complete and open to traffic.
Reason: To ensure the safe and efficient operation of the Strategic Road Network.

34. Highways England - A419 White Hart Junction
No more than 729 dwellings (C3 Land Use) or any other land use shall be occupied unless, and until the improvement scheme for the A419 White Hart Junction as shown on the Swindon Borough Council drawing number T098819-7000-01 or an alternative improvement scheme which provides the same or greater level of benefit in terms of offsetting the unacceptable impacts of the development included within the adopted Local Plan 2026 which has been agreed by the Local Planning Authority, is complete and open to traffic.
Reason: To ensure the safe and efficient operation of the Strategic Road Network.

35. Non-residential servicing details
No commercial or other non-residential building shall be occupied or otherwise used for any purpose until provision has been made within the site for the unloading of goods as approved in writing by the Local Planning Authority. Once provided the loading areas shall be retained and maintained in the approved form without modification.
Reason: In the interests of highway safety and to minimise disruption to nearby residential properties.

36. Construction Method Statement (CMS)
Prior to the commencement of works of any development on any sub-phase hereby permitted, including site clearance, a Construction Method Statement for that sub-phase of development shall be submitted to and approved in writing by the Local Planning Authority. Once agreed, such mitigation measures approved prior to the commencement of construction shall be implemented prior to the commencement of any construction on

the sub-phase and shall be adhered to throughout the construction period of that phase. The Construction Method Statement shall provide:
i. details of the number and frequency of construction vehicle movements and contact details for site manager;
ii. secure vehicle logs, including registrations and time of arrival/departure;
iii. for the loading, unloading and storage of plant and materials, including swept paths of vehicle movements within the site;
iv. a device for removing debris from the highway to ensure the highway is clear at all times and is on 24 hour call out (excluding those days where construction is not permitted);
v. construction vehicle routes to and from and within the site with distance details;
vi. temporary access details and parking area for site operatives and construction traffic, parking of vehicles of site operatives and visitors;
vii. location and details of buildings, enclosures and staff facilities;
viii. specific measures to be adopted to mitigate construction impacts (including infrastructure improvements if appropriate);
ix. details of a procedure for wheel washing and/or vehicle wash down of all site construction traffic leaving any of the construction sites;
x. details of petrol and oil interceptors to be provided;
xi. a method statement for the control of noise, vibrations and air pollution, including pile driving (in accordance with BS: 5228), dust, smoke, fumes and debris during construction;
xii. a Construction Workers' Travel Plan;
xiii. a Traffic Management Plan to control traffic during the construction phases;
xiv. details to maintain access to the adjacent site/land.
xv. strategy outlining the hours for construction works and delivery including the waiting of vehicles undertaking deliveries and collections during the construction phases. The strategy shall also identify measures to ensure ongoing engagement with the local community. The standard hours of construction works and delivery are;
o 0730 to 1830 Monday to Friday;
o 0830 to 1300 Saturdays; and
o Not at all on Sundays, Bank Holidays and Public Holidays.
Reason: To reduce the potential impact on the public highway and residential amenity during the site preparation and construction phase(s) of development.

37. Construction and Environmental Management Plan (CEMP)
Prior to the commencement of works of any development on any sub-phase hereby permitted, including site clearance, a Construction and Environmental Management Plan for that sub-phase of development shall be submitted to and approved in writing by the Local Planning Authority. Once agreed, such mitigation measures approved prior to the commencement of construction shall be implemented prior to the commencement of any construction on that sub-phase and shall be adhered to throughout the construction period of that sub-phase. The Construction and Environmental Management Plan shall provide:
i. measures for the treatment of environmentally sensitive areas and how the environment will be protected during the construction works to include:
a) site walkover survey by a suitably experienced Ecological Clerk of Works to ensure that the status of the Site for habitats and species has not significantly altered since planning consent;

b) The measures to be used during the construction works in order to minimise and reduce the environmental impact of the works (considering both potential disturbance and pollution);
c) A map or plan showing habitat areas to be specifically protected (identified in the ecological report) during the works;
d) Any necessary mitigation for protected species;
ii. a scheme for recycling/disposing of any waste resulting from construction works;
iii. proposals for the transport of waste created during the development process and subsequent use of the site;
iv. Any pollution, hazardous materials and contamination protection methods; and,
v. Details of the persons/ bodies responsible for particular activities to be controlled by the CEMP including to demonstrate suitably qualified for the activity they are undertaking or supervising (e.g. Ecological Clerk of Works).
Reason: To reduce the potential impact on the public highway and ensure the protection of the environment during the site preparation and construction phase(s) of development.

38. Archaeology - Written Scheme of Investigation
Prior to the commencement of development in each sub-phase, a detailed Written Scheme of Investigation for all of the archaeological zones identified within that sub-phase, in Figures 15 and 16 of the Outline Archaeological Mitigation Strategy (V6 - 31st October 2017) and areas of highway infrastructure within sub-phase areas shown in Figure 17, shall be submitted to and approved in writing by the Local Planning Authority to enable mitigation by archaeological excavation, trial trenching and monitoring. The development shall be carried out in accordance with the approved Written Scheme of Investigation.
Reason: To ensure the preservation and conservation of any archaeology on site.

39. Archaeology - Management Plan
Prior to the commencement of development in each sub-phase, a detailed management plan for that sub-phase shall be submitted to and approved in writing by the Local Planning Authority to ensure the preservation in situ of areas of archaeological importance as indicated in Figure 17 of the Outline Archaeological Mitigation Strategy (V6 - 31st October 2017). No development shall take place except in accordance with the approved details.
Reason: To ensure areas of known archaeological significance are preserved in situ and appropriately managed in the long term and during the construction phase of the development.

40. Flood Mitigation
Prior to the commencement of the development, full details of the proposed mitigation measures where these were indicated to be "resolved by development" as outlined in Figure 3K and Appendix 2 of the approved Flood Risk Assessment by Brookbanks Consulting (dated 20/01/2017- ref 1335-1/FRA/01 Rev0), including a programme for implementation shall be submitted and approved in writing by the Local Planning Authority. The approved works for the development shall be completed in accordance with the programme agreed.
Reason: To ensure flood risk is not increased to the site and that the development does not increase the risk of flooding elsewhere; in accordance with Paragraph 163 of the

National Planning Policy Framework (NPPF) and Policy EN6 of the adopted Local Plan 2026.

41. Surface Water - Full Site

Development shall not begin until a detailed Surface Water Management Strategy for the site, has been submitted to, and approved in writing by the Local Planning Authority. The strategy shall include:

a) Evidence that the proposed flows from the site will be restricted to 4.83l/s/ha for all events up to and including events up to and including the 1% AEP + climate change event (40%);

b) Details of how the drainage strategy has been designed to incorporate SuDS techniques to manage water quantity and maintain water quality as set out in the FRA and adopted policy and best practice guidance including the latest SuDS Manual C753;

c) Details of swales and other overland drainage features to manage the existing surface water flow routes through the site, as highlighted on Plan 1335-DR-05 Rev C (submitted to LPA on 16th July 2020);

d) Detailed drainage plan showing the location of the proposed SuDS and drainage network with exceedance flow routes clearly identified as highlighted on Plan 1335-DR-05 Rev C (submitted to LPA on 16th July 2020), that acknowledges the role of green infrastructure resource to accommodate additional features to augment the detailed design if required);

e) Details of how the strategy shall be maintained and managed after completion;

f) Details of how water quality shall be maintained during and after construction;

g) Detailed drainage calculations for all rainfall events up to and including the 1 in 100 year plus climate change event (40%) to demonstrate that all SuDS features and the drainage network can cater for the critical storm event for its lifetime;

h) The submission of evidence relating to accepted outfalls from the site, particularly from any third party network owners; and

i) Sequencing for implementation.

The scheme shall be implemented in accordance with the approved details and timetable.

Reason: To ensure the surface water management strategy (and future phases of development) will comply with the adopted policy and best guidance and that the development will not increase the risk of flooding elsewhere; in accordance with Paragraph 155 of the National Planning Policy Framework (NPPF) and Policy EN6 of the adopted Swindon Local Plan 2026.

42. Surface Water Drainage Scheme - Phase

No development shall take place within each sub-phase until a detailed surface water drainage scheme for that sub-phase has been submitted to and approved in writing by the Local Planning Authority. The scheme shall be in accordance with the surface water management strategy approved in compliance with Condition 41 and shall include a programme for implementation. The scheme shall include:

a) Detailed Drainage Plan, including proposed site levels, impermeable areas (allowance should be made for runoff from green areas in line with FRA) and exceedance flow routes;

b) Details of the drainage features, including sections and should be designed as set out in the FRA and adopted policy and CIRIA SuDS Manual (C753);

c) Detailed Drainage calculations to support the design for all rainfall events up to and including the 1 in 100 year rainfall event (including an allowance for climate change);

d) Details of Adoption and whole life Maintenance requirements in line with current best practice and include a timetable for the maintenance and for resolving any defects that arise in future; and,
e) Details of Pollution Control / Water Quality.
The scheme shall be implemented in accordance with the approved details.
Reason: To ensure development does not increase the risk of flooding elsewhere in accordance Policy EN6 of the Swindon Borough Local Plan 2026.

43. South Marston Brook Crossing Points
Prior to the commencement of development in Rowborough (and not including any access works from the Old Vicarage Lane), detailed design and a timetable for construction of any crossing point of South Marston Brook shall be submitted to and approved in writing by the Local Planning Authority. The crossing points shall be subsequently carried out in accordance with the approved details. The detailed design shall include the following:
a) Detailed plans and cross sections
b) Method statement of how the impact of any crossing has been minimised and mitigated for its impact on biodiversity
c) Detailed designs to ensure hydraulic capacity is at least consistent with the existing watercourse and able to accept a 1 in 100 year flood flows plus an assessment for climate change (an additional 20%).
d) The Soffit level of the crossing point should be set 600mm above the maximum flood water level to allow clearance from debris and wave action, and a further 300mm to allow for changes in water level due to climate change.
e) Detailed designs to ensure the crossing points do not cause flooding either at the site or upstream and downstream of the site. Afflux backwater effect should be kept to a minimum and in all cases must not exceed 75 mm.
f) The abutments should be set back from brink of bank to allow for maintenance and improvement works and provide suitable space to allow mammals to pass.
Reasons: To ensure any crossing points are sensitively designed and implemented so there will be no detrimental impact on the South Marston Brook in terms of flood risk and biodiversity. This condition is in accordance with Paragraph 163 and 170 of the NPPF.

44. Contamination 1 - Site Investigation
Prior to the commencement of any sub-phase of development approved by this planning permission and that includes land identified as relating to former landfill operations or land within 200m of this former landfill (see Plan LHL005/509 rev A) no development shall take place until a scheme for that sub-phase that includes the following components to deal with the risks associated with contamination of the site shall each be submitted to and approved, by the Local Planning Authority:
1. A preliminary risk assessment which has identified:
o all previous uses
o potential contaminants associated with those uses
o a conceptual model of the site indicating sources, pathways and receptors
o potentially unacceptable risks arising from contamination at the site (including groundwater contamination and the mobilisation of contamination to the water).
2. A site investigation scheme, based on (1) to provide information for a detailed assessment of the risk to all receptors that may be affected, including those off site.
3. The results of the site investigation and detailed risk assessment referred to in (2) and, based on these, an options appraisal and remediation strategy giving full details of the remediation measures required and how they are to be undertaken.

4. A verification plan providing details of the data that will be collected in order to demonstrate that the works set out in the remediation strategy in (3) are complete and identifying any requirements for longer-term monitoring of pollutant linkages, maintenance and arrangements for contingency action. Any changes to these components require the express written consent of the Local Planning Authority. The scheme shall be implemented as approved.
Reason: Previous activities at this site may have resulted in contamination. Potential sources of contamination have been noted on this site. In particular a historic landfill, namely Acorn Bridge, is noted to be present on site. Former canal features, railways and source associated with former farm buildings/agricultural usage could also be a potential source of contamination.

45. Contamination 2 - Verification
No occupation of any or each sub-phase of development that includes land identified as relating to former landfill operations or land within 200m of this former landfill (see LHL005/509 rev A) shall take place until a verification report demonstrating completion of works set out in the approved remediation strategy for that sub-phase and the effectiveness of the remediation shall be submitted to and approved, by the Local Planning Authority. The report shall include results of any sampling and monitoring carried out in accordance with the approved verification plan to demonstrate that the site remediation criteria have been met. It shall also include any plan (a "long-term monitoring and maintenance plan") for longer-term monitoring of pollutant linkages, maintenance and arrangements for contingency action, as identified in the verification plan. The long-term monitoring and maintenance plan shall be implemented as approved.
Reason: To ensure that contamination at the site is remediated, such that the site does not pose a risk to controlled waters. In accordance with Paragraph 170 and 178 of the NPPF.

46. Contamination 3 - Remediation
If, during development, contamination not previously identified is found to be present at the site then no further development in that sub-phase shall be carried out until the developer has submitted a remediation strategy to the Local Planning Authority detailing how this unsuspected contamination shall be dealt with and obtained written approval from the Local Planning Authority. The remediation strategy shall be implemented as approved.
Reason: To ensure that any unexpected contamination encountered during the developments is suitably assessed and dealt with, such that it does not pose an unacceptable risk to ground or surface water. In accordance with Paragraph 170 and 178 of the NPPF.

47. Noise 1 - Residential Amenity
Prior to the commencement of any development within the areas shown green on plan 16/0492/SK7-1, a BS 4142:2014 (or later versions) assessment for that area, the scope of which has first been approved by the Local Planning Authority, shall be undertaken to determine the impact of commercial noise sources on the development hereby granted, and the findings submitted to and approved by the Local Planning Authority. Where the rating level of any noise source exceeds 5dB below the background level (LA90), as determined by the assessment, a scheme of mitigation to protect the amenity of the future occupants of the development shall be submitted to and approved by the Local Planning

Authority. The agreed mitigation measures shall be implemented in accordance with the approved details and thereafter be permanently maintained.
Reason: To mitigate any harm arising from nearby noise sources and to ensure the development would provide an acceptable living environment for residents.

48. Noise 2 - Internal Noise Levels
The proposed residential units shall be designed to meet the indoor ambient noise levels contained in British Standard 8233:2014 which requires, when windows are closed and background ventilators (where present) are open:
o Resting 35dB LAeq,16hour (0700-2300)
o Dining 40dB LAeq,16hour (0700-2300)
o Sleeping 30dB LAeq,8hour (2300-0700)
o 45dB LAFmax not to be exceeded more than 15 times per night (2300-0700) in the bedrooms
o Noise levels shall not exceed 50dB LAeq, 16hour in private external amenity spaces, with the exception of the areas illustrated in red on plan 16/0492/SK7-1, where the development will be designed to control noise levels in private external amenity spaces to 50dB LAeq,16hour wherever practicable, and shall not exceed 55dB LAeq,16hour.

Prior to the construction of any dwelling within areas shown red on plan 16/0492/SK7-1 the details of the mitigation required to ensure compliance with the noise levels identified above for that dwelling, shall be submitted to and approved in writing by the Local Planning Authority.
Reason: To mitigate any harm arising from nearby noise sources and to ensure the development would provide an acceptable living environment for residents.

49. Noise 3 - Mechanical Ventilation
Where the internal noise levels in bedrooms and living rooms specified in Noise Condition 2 will be exceeded with windows partially open by the dB ranges identified below, details of suitable ventilation systems shall be submitted to and approved in writing by the Local Planning Authority in accordance with the following ventilation systems as defined in Building Regulations Approved Document F (2010):
a) _$55dB: ADF System 1, 2, 3 or 4
b) 5dB - 10dB: ADF System 3 (MEV) or 4 (MVHR)
c) _$410dB: ADF System 4 (MVHR)
Reason: To ensure an acceptable living environment is provided for all occupiers of the development.

50. Noise 4 - Validation Survey
No dwelling within the areas shown red on plan 16/0492/SK7-1 shall be occupied until a pre-occupation validation noise survey has been undertaken and certificate of compliance by an approved acoustic assessor relevant to that dwelling, has been submitted to and approved in writing by the Local Planning Authority demonstrating that the approved noise mitigation measures are effective in reducing external noise to an acceptable level (in line with Noise Condition 2).
The Local Planning Authority shall identify a sample not exceeding 5% of dwellings within the areas shown red on plan 16/0492/SK7-1 to be surveyed.

Reason: To ensure an acceptable living environment is provided for all occupiers of the development.

51. Noise 5 - Commercial
Prior to the occupation of each commercial unit a BS 4142:2014 assessment should be undertaken to consider the impact of operational noise from plant on residential premises. Where the rating level of any noise source exceeds 5dB below the background level (LA90), as determined by a BS 4142:2014 assessment, a scheme of noise mitigation should be implemented and maintained.
Reason: In the interests of amenity.

52. Commercial Ventilation
No commercial premises shall be occupied, until details of all necessary associated extraction or ventilation systems for that premises have first been submitted to and approved in writing by the Local Planning Authority. Any necessary agreed mitigation measure shall be installed prior to the use commencing and retained thereafter.
Reason: In the interests of amenity.

53. Slab levels
Notwithstanding any plans to the contrary, and prior to the commencement of the development of each sub-phase, the full details of the existing and proposed site levels, together with the finished floor slab levels of any buildings (including roads, bridges, footpaths and other structures) for that sub-phase shall be submitted to and approved in writing by the Local Planning Authority. Development shall be carried out in accordance with the approved details.
Reason: To ensure that the finished floor slab levels details and heights of development are satisfactory.

54. Materials
Prior to the commencement of works in connection with each sub-phase, details of all external facing materials shall have first been submitted to and approved in writing by the Local Planning Authority. The development hereby permitted shall be carried out and retained thereafter in accordance with these approved details.
Reason: To ensure that the appearance of the development is satisfactory.

55. Wheelchair Accessible Housing
Not less than 2% of the total residential development shall be constructed as wheelchair user homes. These homes will include level or ramped access to the front entrance and flush thresholds into all internal doorways. Doorway widths, internal circulation space, through-the-floor lift(s) and bathrooms, toilets and kitchens shall all be designed to provide for wheelchair user occupiers in accordance with a plan and schedule. The plan and schedule, including the dimensions of lift apertures, shall be submitted alongside the first reserved matters application for approval by the Local Planning Authority. Each application for approval of reserved matters shall demonstrate compliance with the approved plan and schedule. These design features and provisions shall be retained for so long as the buildings hereby permitted remain in use as dwelling houses.
This requirement shall be implemented as a cumulative total across the site triggered for every 50th dwelling submitted for approval. Wheelchair user homes will be provided as one or two storey dwellings only and meet the current specialist housing need within the Borough.

Reason: In the interests of providing accessible homes to meet the identified needs of older people and people with disabilities.

56. Street Lighting and Street Furniture
Prior to the commencement of development in each sub-phase, a scheme including the design, specification and external appearance of the street lighting and other street furniture for that sub-phase shall be submitted to and approved in writing by the Local Planning Authority. The scheme shall include details of the furniture design in each street context and specification and installation between the frontage and the adopted highway. The street lighting and street furniture shall be implemented in accordance with the approved scheme.
Reason: In the interests of highway safety and amenity and to ensure a high quality and consistent design for common structures throughout the NEV.

57. Dorset & Wiltshire Fire and Rescue
Each reserved matters shall include a scheme and specification for the provision and location of fire hydrants to meet the firefighting needs of the development, if required to serve that area. No development shall take place other than in accordance with the approved scheme.
Reason: To reduce the risk from fire in the interests of public safety and local resilience.

58. Ambulance Standpoints
Prior to the commencement of development within any of the local centres, details of an ambulance standpoint, if required, including the location and materials shall be submitted to and approved by the Local Planning Authority.
Reason: To ensure an appropriate emergency services provision can be maintained throughout the NEV.

59. Thames Water - Waste Water
Prior to the commencement of the dwellings, commercial and community uses hereby approved, a foul drainage strategy detailing any on and/or off site drainage works shall be submitted to and approved in writing by the Local Planning Authority. No discharge of foul or surface water from the site shall be accepted into the public system until the drainage works referred to in the strategy, including any interim arrangements, have been completed in accordance with the approved drainage strategy and retained in the approved form.
Reason: The development may lead to sewage flooding; to ensure that sufficient capacity is made available to cope with the new development; and in order to avoid adverse environmental impact upon the community.

60. Thames Water - Potable Water
Prior to the commencement of the dwellings, commercial and community uses hereby approved, impact studies of the existing water supply infrastructure shall be submitted to and approved in writing by the Local Planning Authority. The studies should determine the magnitude of any new additional capacity required in the system and a suitable connection point. Once agreed all works shall be implemented in accordance with the approved scheme and retained in the approved form.

Reason: To ensure that the water supply infrastructure has sufficient capacity to cope with the/this additional demand.

61. Broadband
No development shall take place within a sub-phase until details of measures to facilitate the availability of high speed broadband connection to the occupants within that sub-phase have been submitted to and approved in writing by the Local Planning Authority. The development shall be carried out in accordance with the approved details prior to the occupation of the buildings to which it relates.
Reason: To ensure access to appropriate broadband infrastructure in accordance with Policy IN3.

62. Refuse storage
No dwelling shall be occupied until details of suitable waste storage/collection areas have been submitted to and approved in writing by the Local Planning Authority, that allows for the convenient storage of waste and unrestricted access at all times. Such waste storage/collection areas shall be retained for so long as the use hereby authorised remains on site.
Reason: In the interest of amenity.

63. No external storage
No goods or materials of any kind shall be stacked or stored, or processes undertaken outside any unit within the employment, retail, commercial or institutional areas. There shall be no storage of oils, fuels or chemicals on the site other than in storage facilities constructed in accordance with details which shall have been submitted to and approved in writing by the Local Planning Authority.
Reason: In the interest public safety and preventing pollution.

**Informatives**

1. Environment Agency
It should also be noted that works within 8 metres of the main river including South Marston Brook will require a Flood Risk Permit, previously known as a Flood Defence Consent. As the predicted impacts of climate change on river flows may inform design decisions for watercourse crossings, which in turn may affect flood mechanisms and extents, we strongly advise early consultation with the Environment Agency by contacting our flood risk management team at planning_THM@environment-agency.gov.uk.

2. Thames Water - Surface Water Drainage With regard to surface water drainage it is the responsibility of a developer to make proper provision for drainage to ground, water courses or a suitable sewer. In respect of surface water it is recommended that the applicant should ensure that storm flows are attenuated or regulated into the receiving public network through on or off site storage. When it is proposed to connect to a combined public sewer, the site drainage should be separate and combined at the final manhole nearest the boundary. Connections are not permitted for the removal of groundwater. Where the developer proposes to discharge to a public sewer, prior approval from Thames Water Developer Services will be required. The contact number is 0800 009 3921. Reason: To ensure that the surface water discharge from the site shall not be detrimental to the existing sewerage system.

3. Thames Water - Public Sewer Crossing There are public sewers crossing or close to your development. In order to protect public sewers and to ensure that Thames Water can gain access to those sewers for future repair and maintenance, approval should be sought from Thames Water where the erection of a building or an extension to a building or underpinning work would be over the line of, or would come within 3 metres of, a public sewer. Thames Water will usually refuse such approval in respect of the construction of new buildings, but approval may be granted for extensions to existing buildings. The applicant is advised to visit thameswater.co.uk/buildover.

4. Thames Water – Waste
This site forms part of the New Eastern Villages Development. Thames Water have commissioned a catchment study to determine the infrastructure requirements for accommodating the development. The applicant is requested to contact Developer Services to discuss the options for connecting this site to the public foul sewer system.

5. Street Naming and Numbering In addition to this consent, under the Town Improvement Clauses Act 1847 the applicant is required to contact SBC's Street Naming & Numbering Officer as soon as possible with regard to registering new or changes to the official address of any properties within this development.

6. Works in Highway
In addition to this consent, the proposed development will require separate Local Highway Authority approval for the construction of works in the highway. The Applicant is required to obtain this approval before works commence and is therefore recommended to contact Swindon Borough Council's Street Works Management Department in this respect as soon as possible.

7. Bats
There is a risk that bats may occur at the development site. Many species of bat depend on buildings for roosting, with each having its own preferred type of roost. Most species roost in crevices such as under ridge tiles, behind roofing felt or in cavity walls and are therefore not often seen in the roof space. Bat roosts are protected all times by the Conservation of Habitats and Species Regulations 2010 (as amended) even when bats are temporarily absent because, being creatures of habit, they usually return to the same roost site every year. Planning permission for development does not provide a defence against prosecution under this legislation or substitute for the need to obtain a bat licence if an offence is likely. If bats or evidence of bats is found during the works, the applicant is advised to stop work and follow advice from an independent ecologist or to contact the Bat Advice Service on 0845 1300 228, email enquiries@bats.org.uk or visit the Bat Conservation Trust website.

8. Great Crested Newts
The applicant is advised that Great Crested Newts are protected by the Wildlife and Countryside Act (1981) and have European Protection under the Conservation Regulations (1994). The European protection afforded to this species means that a licence may be required from the Department of Environment, Food and Rural Affairs for the works you propose. Natural England can be contacted at wildlife@naturalengland.org.uk.

9. Badgers
The applicant is made aware that under the protection of Badgers Act (1992), it is illegal to kill, injure, take or cruelly ill-treat a badger, or damage destroy or obstruct access to a badger sett, or disturb a badger whilst it is occupying a sett. If any construction work using heavy machinery is required to be completed within 30 metres of the sett, lighter machinery within 20 metres or hand tools within 10 metres, a licence will be required from Natural England. Natural England can be contacted on wildlife@naturalengland.gov.uk.

10. CIL Liable Development

CIL Liable Development: This development constitutes Community Infrastructure Levy (CIL) liable development. CIL is a mandatory financial charge on development. For more information on CIL visit www.swindon.gov.uk/cil or telephone the SBC CIL Team on 01793 466289 or 466397 or email cil@swindon.gov.uk. To avoid additional financial penalties the requirements of the impact of CIL must be managed before development is commenced and subsequently payment made in accordance with the requirements of the CIL Demand Notice issued. Information on possible exemptions that may be capable of being applied for can be found at: https://www.planningportal.co.uk/info/200126/applications/70/community_infrastructure_levy and https://www.gov.uk/guidance/community-infrastructure-levy. CIL remains relevant in the event that planning permission is allowed by Planning Appeal.

11. Dorset & Wiltshire Fire and Rescue Sprinklers
The applicant's attention is drawn to the contents of the Dorset & Wiltshire Fire and Rescue Service letter dated 22nd November 2013 and the recommendations contained therein in relation to the installation of sprinklers.

12. South Marston Definition
For the purposes of defining the scale of development, South Marston is defined as development located within the South Marston Character Areas also known as 'Village Centre', 'Manor Green', 'Nightingale Corner' and 'Marston Gate', as illustrated on 'Fig 022: Character Areas' within the Design & Access Statement - February 2017.

13. Rowborough Definition
Rowborough is defined as development located within the Rowborough Character Areas also known as 'Neighbourhood Hub', 'Eastside', 'Rowborough Gate' and 'Valley View', as illustrated on 'Fig 022: Character Areas' within the Design & Access Statement - February 2017.

14. Sub-Phase Definition
Where the term "sub-phase" is used it is referring to the part of the site within a Phase for which a reserved matters application is submitted.

Richard Ben.

**Director of Strategic Development** **Date: 11th August 2021**

## Notes

"The Local Planning Authority", and "the application" referred to within this notice, are described on page 1 of this notice. The conditions have been imposed for the reasons set out within this notice.

In addition to this consent, if this permission results in amendments to or provision of new properties please contact gazetteers@swindon.gov.uk or telephone: 01793 466271 for information and advice regarding the registration of new or revised property addresses. The naming of streets and addressing of properties within the Borough, is controlled by Swindon Borough Council under the Town Improvement Clauses Act 1847. The Act is used to make sure that any new street names, building names and numbers are allocated logically and that a unique and unambiguous address is provided for every property within the Borough.

If the Applicant is aggrieved by the decision of the Local Planning Authority to grant permission for the proposed development with conditions, the applicant may appeal to the Secretary of State in accordance with section 78 of the Town and Country Planning Act 1990, within 12 weeks of the date of the decision. Appeals must be made on a form that is obtainable from the Secretary of State at The Planning Inspectorate, Temple Quay House, 2 The Square, Temple Quay, Bristol BS1 6PN or alternatively you may appeal online at https://www.gov.uk/government/organisations/planning-inspectorate

The Secretary of State can allow a longer period for giving notice of an appeal, but will not normally be prepared to use this power unless there are special circumstances which excuse the delay in giving notice of appeal.

The Secretary of State need not consider an appeal if it seems to the Secretary of State that the Local Planning Authority could not have granted planning permission without the conditions they imposed, having regard to the statutory requirements, to the provisions of any development order and to any directions given under a development order.

In practice, the Secretary of State does not refuse to consider appeals solely because the Local Planning Authority based their decision on a direction given by the Secretary of State.

If the permission to develop land is granted with conditions, the owner of the land may claim that the owner can neither put the land to a reasonably beneficial use in its existing state nor render the land capable of a reasonably beneficial use by the carrying out of any development which has been or would be permitted.

In these circumstances, the owner, may serve a purchase notice on the Council. This notice will require the Council to purchase the owner's interest in the land in accordance with the provision of Chapter I of Part 6 of the Town and Country Planning Act 1990.

# Appendix 2: Pre-application Feedback Schedule

# Appendix 2: Pre-application Response Consultation Tracker

The table below sets out a summary of the pre-application responses received from Swindon Borough Council following recent engagement (June 2024) on the proposed scheme. The table provides responses to the pre-application, and details where the scheme has been amended in light of the comments.

| Consultee | Pre-app Response | Response incorporated into submission scheme |
|---|---|---|
| *Planning Officer*<br>Edward Snook | • Consideration of the design of Block A due to its height and conflict with neighbourhood plan<br>• Planning officer highlights the suggestion to create more distinctive roof forms<br>• Details on materials<br>• Variation in front boundary treatments<br>• Key focus on changes to Primary Street scene regarding Materials palette and house types<br>• Request for further clarification on relationship and timing of the resurfacing of the bridleway. | • Apartment buildings have been redesigned to better tie in with the street scene and are now 2.5 storeys.<br>• All street scenes have been reviewed and re-worked in line with the approved Character Area Design Code<br>• Materials are set out in external finishes drawing<br>• All street scenes have been reviewed and re-worked in line with the approved Character Area Design Code<br>• As above.<br>• Timings for the resurfacing of the bridleway are set out in the approved CADC which states *"The section of bridleway (SM4) 'The Leaze' and as shown on the Strategic Coding Plan: Footpaths and Bridleways in the Strategic Design Code, which runs between Vicarage Gardens and the northern parcel, shall be resurfaced prior to the occupation of 50% of dwellings within the parcel that shares a boundary with the bridleway (with the exception of the northern loop section which will be carried out in accordance with Schedule 1 Section 13 to the S106 ref Bridleway 4 Crossing Land)."* |
| *Urban Design*<br>Matt Haslam<br>Peter Garitsis | • Highlighted the need to revisit some of the layout in order to enhance the open green space. | • Open space has been identified to the south and east of the application site boundary through the illustrative masterplan for the outline permission. This is also reflected in the SDC and CADC for the site. |

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| | • There are concerns over gardens that are exposed due to parking having to be in the rear of some of the plots and lack of surveillance. It is also suggested whether the fire turning area near plot 40/41 and 115/133 are actually necessary as the fire engines could reverse back<br><br>• Concern over plot 94 as it is dominated by vehicle access, turning and parking.<br><br>• Suggestions include back-back arrangement or introduce a 2 storey or a few 2 storey blocks in the central space.<br><br>• Concern over the expanse of hard surfacing and suggest it would make sense to tighten up the space, but it would need to be checked by tracking.<br><br>• Concern over private drives off Old Vicarage Lane, may be slightly close to junction | • This was discussed as par for the pre-application meeting in combination with the landscape officer comments and has been rationalised<br><br>• Fire turning area are still technically needed to comply with NHBC requirements<br><br>• Fire tenders are limited to 20m reversing, and all dwellings must be 45m to the furthest room in the house. We have therefore softened the engineering of the of the space with block paving and planting where possible<br><br>• This has been redesigned and simplified and taken account of the larger resurveyed hedgerow.<br><br>• Private drives have been assessed by highways engineer and judged to be appropriate and safe |
| *Landscaping*<br>Charles Potterton | • It is suggested that the balance of the size of trees needs to be re done as they are only 11 large trees and focus on the right trees in the right places i.e. looking at the species choice as well. | • All tree species have been proposed in line with species defined by the approved design code.<br>• Areas of shrubs have been consolidated and presented as simple mixed beds with fewer different species<br>• Due to underground constraints, it has restricted the tree planting |

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| | • Trees are shown in a very narrow beds between parking bays (33-34 and 35-36) can they be joined together so tree has more space to grow?<br>• Question species choice of River Birch<br>• Balance of shrubs and trees and utilisation of the available space near certain parking spaces<br>• Also suggested is that it should be more uniform with the areas of shrub and the same style should be repeated across the scheme.<br>• Overall, the scheme needs to be revised in terms of tree species, size and location and the shrub planting simplified. | • Parking (33-34 and 35-36) has been retained but species amended to Sorbus aria 'Lutescens' which thrive in small spaces.<br>• River birch is suitable due to soil type<br>• Additional tree planting has been added, narrow spaces of planting been retained due to parking needs<br>• The tree protection plan includes the species and tag numbers for all existing trees<br>• Amendments have been made on the specification as per the detail comments provided<br>• Scheme has been reviewed in line with the design code |
| *Highways & Transport*<br>Chelsey Lucas | • Need to demonstrate adequate visibility along Old Vicarage Lane.<br>• Length of highway front plots 47-56 that exceed the speed limit.<br>• Internal road layout is not suitable for allowing opportunities for cars to pass a refuse vehicle.<br>• Provision for visitor parking is 30% lower than required. Car park strategy would benefit from refinement before submission.<br>• Bin and Cycle Storage Plan corrupted making it difficult to view.<br>• Travel Plan required to support reserved matters application. | • Adequate visibility demonstrated on Road Geometry Plan<br>• Additional traffic calming measures included along stretch of highway to the front of plots 47-56.<br>• Refuse tracking drawing provided demonstrating suitable passing places.<br>• Highways design in accordance with CADC1 and SDC.<br>• Compliant level of visitor parking provided conveniently distributed across the site.<br>• Travel Plan requirement covered in S106. |
| *Ecology*<br>Des Hobson | • Concerns over the lack of public open space and some image misleads the idea that there is open space. | • POS is proposed to be delivered to the south (outside of the application boundary) in line with the CADC and SDC as part of the wider site allocation. |

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| | • It is suggested to scope the option of purchasing SANG capacity at Stanton County Park.<br>• Each proposed dwelling should contain at least one in-built nesting brick.<br>• Trees proposed are the usual unimaginative mix of fastigiate varieties. | • The proposed scheme to which this relates (134 houses) will not increase visitor pressure on the SAC. Natural England were consulted on impacts at the outline stage. The development falls outside of the zone of influence.<br>• The number of bird boxes proposed is in line with the submitted and approved FLEAMP for the site.<br>• All tree species have been proposed in line with species defined by the approved design code. |
| *Housing*<br>Sally Nelson | • Courtyard parking is not favourable and should be avoided.<br>• Careful design will be required due to rear access, wheelie bin/recycle box storage etc. as there is a risk of long alley ways and 'bin blight'.<br>• Site meets threshold to provide wheelchair units 2% (3 units). | • The design of the layout, with the constraints and opportunities of the site, require limited use of parking courts.<br>• BCP and refuse have been considered in the 19-22 parking area, and bins for 58-61 can and will be collected from the rear to ensure bins aren't littering the streetscene.<br>• 2x 3 bed wheelchair units have been provided on plots 108 and 109 |
| *Lead Local Flood Authority*<br>Emma Chilton-Burkock | Note: this pre-app response has been made on the basis of if it was a formal application submission.<br>Reasons for refusal:<br>1. No surface management strategy<br>2. Not demonstrated the method of disposing surface water is feasible.<br>3. It has not demonstrated that the development will not increase risk of flooding elsewhere. | • Site specific drainage strategy provided. The strategy ties in with the wider development area. |
| *Parish Council* | • The 3-storey block of flats exceeds the height allowance of 2 storeys. | • The apartment buildings have been reduced to 2.5 storeys |

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| | • Courtyard parking is contrary to SBC Urban design and highway preferences<br>• Prefer more integrated affordable housing<br>• Concerns over tenure blind due to market houses having more space and clearly defined parking areas.<br>• Concerns over distribution of visitor parking<br>• Suggest a 'desire path' (Proposed width?)<br>• Parish consider that the concept of Carpenters Walk cannot fully be met without securing this preferred route and would welcome your support for our comments in the next revision of the SDC.<br>• Suggest the bridleway to be resurfaced | • Courtyard development is both necessary and appropriate in terms of place making and highways restrictions<br>• The affordable housing has been pepper potted throughout the development and located in most prominent locations and in appropriate cluster sizes for ease of management<br>• Parking bays will be parking with their allocated plot numbers and sold with clear indication of where to park<br>• Updated information provided on 'desire path'<br>• The Carpenter's Walk concept is compliant with the HHT strategic design Code and has been considered with the wider context in mind<br>• As mentioned above, resurfacing of the bridleway is set out in the approved CADC. |

# Appendix 3: Policy NC3 – New Eastern Villages - including Rowborough and South Marston Village Expansion

a. Land to the East of the A419, as defined on the Policies Map, is allocated for a mixed-use development. The form of the development shall comprise a series of new inter-connected distinct villages and an expanded South Marston village defined by the network of green infrastructure corridors.

b. The development shall provide:

- a design led approach to housing density leading to an overall average density of 40 dwellings per hectare; comprising:
  - about 6,000 dwellings at the New Eastern Villages (south of the A420);
  - about 1,500 dwellings at Rowborough (north of the A420).
  - 500 dwellings at South Marston.
- Affordable housing shall be provided at Rowborough and south of the A420 in accordance with Policy HA2. Separate proposals are made in Policy RA3 in relation to South Marston
- high quality public realm including outdoor civic public space;
- sustainable transport links including:
  - walking and cycle network improvements that integrate with existing networks and provide good connectivity within the development and to the surrounding area;
  - an express bus network through the District Centre that connects the Eastern Villages to Swindon Town Centre as part of phase 1 of the development, which includes residential development north of the A420, the District Centre and the employment allocation;
  - additional public transport services to connect with Swindon and internally within the development;
  - an improved gateway junction at White Hart to manage additional demand and deliver high quality public realm;
  - improvements to the Oxford Road/Drakes Way and Covingham Road/Dorcan Way transport corridors;
  - a green bridge across the A419 near Covingham Drive to provide for walking, cycling and public transport;

- a new road link to the Commonhead Roundabout;
- a new road link under the Bristol to London railway line connecting the development north and south at Rowborough;
- New and/or improved accesses to the A420 for proposed residential and employment uses;
- a 1000 (3ha.) space Park and Ride site; and
- measures to minimise rat-running through existing adjacent villages and east Swindon.

- an extensive green infrastructure network that maximises opportunities for habitat connectivity and enhanced biodiversity including extending the River Cole green infrastructure corridor and connecting with Nightingale Wood;
- sports and leisure facilities, including playing pitches a leisure centre and a 25m swimming pool;
- about 40 hectares net of employment land in total (B Class Uses) to be located south and east of the A420 and A419 respectively adjacent to the White Hart Junction, in a form that complements the mixed-use District Centre, and safeguards its connection with the wider residential development in the Eastern Villages and distributed as follows:
  - 2.5 hectares within B1a use-class to be located at and/or adjacent to the District Centre;
  - 7.5 hectares. within B1b/c or B2 use-class; and
  - 30 hectares within B8 use-class.
- about 12,000m2 (gross) of retail floorspace including a high quality District Centre with strong connectivity to the adjacent residential areas, comprising an anchor food store and complementary uses, and a network of Local Centres that offer retail provision of a scale that meets the daily shopping needs of the communities they serve, including the existing community at South Marston.
- educational requirements comprising:
  - a minimum of 8 forms-of-entry of secondary provision;
  - a minimum of 8 forms-of-entry of primary provision with early learning facilities
  - a site for a special school for children and young persons with profound, multiple and severe learning difficulties for ages 0-25
  - measures to manage the demographic peak at primary and secondary schools;

- community facilities by the means of safeguarded land and/ or developer contributions, including where appropriate, flexible, multi-purpose buildings for use by the community, the public sector and for worship at the District Centre, local centres and educational requirements;
- a health care facility with GP, dentist and pharmacy at the District Centre;
- safeguarded land for a fire station towards the southern part of the site, and a
- sewage treatment works if required.

c. The development will ensure:

- the landscape context and views to and from the North Wessex Downs AONB are respected, including potential off-site mitigation;
- the risk of flooding from the development is minimised, both within the development and at existing neighbouring communities in accordance with Policy EN6;
- biodiversity, including the River Cole Corridor and River Cole Meadow County Wildlife Sites, is protected, integrated and enhanced; and
- the historic environment, including the Scheduled Monument, Earlscourt Manor, Great Moorleaze Farm and other Listed Buildings are protected, acknowledged and enhanced.

d. The route for the Wilts & Berks Canal as set out on the Policies Map will be safeguarded and protected from development.

e. The character and identity of Wanborough, Bishopstone and Bourton will be protected by a principle of non-coalescence between the settlements. The land between the New Eastern Villages site boundary and the existing villages shall remain part of the countryside. However, small scale development within this area, as defined on the Policies Map, will be permitted where it retains or enhances the existing character of the countryside and:

- involves the re-use, conversion or extension of existing buildings at a scale appropriate to their location, in accordance with the criteria specified in Policy DE1; or
- is an essential requirement directly related to the economic or social needs of the rural community.

f. The character and identity of South Marston will be protected as set out in Policy RA3.

# Appendix 4: Letter to SBC regarding variation to affordable housing mix

Turley

20 April 2023
**Delivered by email**

Mr Edward Snook
Planning Department
Swindon Borough Council
Civic Offices
Euclid St
Swindon
SN1 2JH

Dear Ed

**PHASE 1 - LAND NORTH OF A420 EASTERN VILLAGES, SWINDON OF OUTLINE PERMISSION S/OUT/13/1555 – PROPOSED VARIATION TO AFFORDABLE HOUSING MIX**

Further to recent e-mail correspondence between Turley and Swindon Borough Council, we write on behalf of Taylor Wimpey to request agreement from Swindon Borough Council that the proposed variation to the affordable Shared Ownership mix is acceptable in respect of the Reserved Matters application at Phase 1 (also referred to as '*Skylark*') of the wider development at Land north of A420, Eastern Villages Swindon. This request has arisen following feedback from registered providers who have advised that that one-bedroom shared ownership properties are not preferable or deliverable in the area.

**CONTEXT**

The wider site currently benefits from an extant planning outline planning permission (ref. S/OUT/13/1555) which was granted on 11th August 2021 and permitted the following development:

> *"Outline Planning Permission, for a sustainable urban extension to the east of Swindon and north of the A420 of up to 2,380 dwellings together with a mixed use local centres/areas (including A1 retail up to 1,500 sq. metres, services (A2), restaurants, pubs and takeaways (A3, A4, A5), business uses (B1) up to 1,000 sq metres, residential); community uses (D1); sheltered and/or care accommodation (C2/C3); two primary schools; green infrastructure including formal (including playing fields) and informal open space, landscape, biodiversity and amenity space; play space (including NEAPS/LEAPS/MUGAS); changing and sports facilities (including D2) and ancillary retail uses; sustainable drainage systems; highway, cycle and pedestrian routes; car parking; infrastructure (including utilities); engineering works including ground remodelling; demolition, site reclamation and removal of structures; the formation of new accesses from the A420, Old Vicarage Lane and Thornhill Road."*

As the Council will be aware, the Section 106 agreement sets out the following requirement at *Part 1 – Provision of Affordable Housing Units* (paragraph 1.2) in respect of the affordable housing mix:

The Pinnacle
20 Tudor Road
Reading
RG1 1NH

T 0118 902 2830 turley.co.uk

"Turley is the trading name of Turley Associates Limited, a company (No. 2235387) registered in England & Wales. Registered office: 1 New York Street, Manchester M1 4HD."

*"Twenty three percent (23%) of the Dwellings which are constructed on the Application Site shall be Affordable Housing of which fifty percent (50%) shall be Affordable Rented Units (or Intermediate Rented Units in the event that Affordable Rent is no longer available to the Registered Provider) and fifty percent (50%) shall be Intermediate Units or such other tenure mix as may be proposed by the Owner and approved by the Council (and based on the total of two thousand three hundred eighty (2380) Dwellings proposed on the Application Site five hundred forty eight (548) shall be Affordable Housing) with a mix as follows:*

*a) Fifteen percent (15%) x one-bedroom flats (2 persons)*

*b) Fifty three percent (53%) x two-bedroom flats and houses (4 persons); the majority of which to be houses*

*c) Thirty percent (30%) x three-bedroom houses (5 persons); including some ground floor level access 3-bed flats (5 persons) for Affordable Rented*

*d) Two percent (2%) x four-bedroom houses (7 persons);*

*Or such other mix as may be proposed by the Owner and approved in writing by the Council."*

**REASON FOR PROPOSED VARIATION**

Taylor Wimpey is proposing to comply with the affordable mix in respected of rented units with the following split to be provided:

- 15% - 1 bedroom
- 53% - 2 bedrooms
- 30% - 3 bedrooms
- 2% - 4 bedrooms

However, in relation to the Shared Ownership units, Taylor Wimpey have received feedback from Registered Providers (details provided at **Annex 1** of this letter), which demonstrates that they would not accept 1-bedroom units for Shared Ownership with a strong preference for 2- and 3-bedroom units. To summarise the feedback, the Registered Providers have stated the following:

- There is some demand for affordable rented one-bedroom properties, however not for a Shared Ownership tenure. Generally, there is higher demand for two- and three-bedroom Shared Ownership properties.
- One of the Registered Providers do not accept one-bed Shared Ownership properties in Swindon outright and prefers two and three bed properties in the area. For the other two Registered Providers, there is a general presumption against one-bedroom shared ownership units.

**PROPOSED SHARED OWNERSHIP MIX**

On the basis of the feedback from the Registered Providers, Taylor Wimpey therefore proposes a mix for Phase 1 of the development that does not include 1-bedroom Shared Ownership units, with the 15% redistributed across other dwelling sizes. The proposed Shared Ownership mix is as follows:

- 45% 2 bed
- 45% 3 bed
- 10% 4 bed

**FUTURE PHASES**

Taylor Wimpey understands that should they wish to vary the affordable mix within future phases of the wider site at Land north of A420, Eastern Villages, this should be revisited at each phase of the proposed development. It is also understood that once an alteration to the mix for a specific phase is agreed, the Council will not be seeking to make up any perceived 'shortfall' from Phase 1 within later phases that come forward.

**SUMMARY**

Taylor Wimpey considers the proposed mix as set out above is appropriate and reflects the feedback received from the Registered Providers. We would be grateful if Swindon Borough Council could confirm if the proposed variation to the affordable mix at Phase 1 is acceptable. In the meantime, if you have any queries, please do not hesitate to contact me.

Yours sincerely

Emily Rickard
**Planner**

emily.rickard@turley.co.uk

# Appendix 5: Letter from SBC – agreement to variation of affordable housing mix

**Strategic Development & Growth**

Swindon Borough Council
Wat Tyler House,
Beckhampton Street,
Swindon SN1 2JH

**Tel**:- 01793 463000
**DX**:- 133055 Swindon 16
**Mincom**:- 01793 436659

Emily Rickard
Turley
The Pinnacle
20 Tudor Road
Reading
RG1 1NH

| | |
|---|---|
| Please quote: | S/OUT/13/1555 |
| Date: | 2nd May 2023 |
| Please ask for: | Mr Edward Snook |
| Direct line: | 07823525270 |
| Email: | esnook@swindon.gov.uk |
| Fax Number: | 01793 466459 |

Dear Emily,

**Re:** Phase 1 - Land North of A420, New Eastern Villages, Swindon
S/OUT/13/1555 – S106 Agreement (dated 11th August 2021) – Affordable Housing (Schedule 3, Part 1, Clause 1.2)
**At:** Land North Of A420, New Eastern Villages, Swindon

In accordance with Schedule 3, Part 1, Clause 1.2 of the above legal agreement, a revised Affordable Housing Mix for Shared Ownership Units is proposed. The amendments are sought in relation to Phase 1 (South Marston East), as illustrated on the approved Phasing Plan (Phases of Development (Drawing No. LHL006-009 Rev D) (submitted 29th July 2022)).

I write to confirm that the Council is in agreement with the letter from Emily Rickard (Turley) dated 20th April 2023. The revised mix for Shared Ownership Units within Phase 1 (South Marston East) is therefore as follows:

- 45% 2 bed
- 45% 3 bed
- 10% 4 bed

The works shall be carried out in accordance with the approved details.

Yours sincerely

Edward Snook

**Mr Edward Snook**
**Senior Planner**

**Turley Office**
The Pinnacle
20 Tudor Road
Reading
RG1 1NH

T 0118 902 2830

Turley